

500 GENERAL PROVISIONS

- 500.1 The provisions of this chapter shall be applicable to all sources of pollution affecting the Anacostia and Potomac Rivers and their tributaries within the District of Columbia (the District) including pollution carried by stormwater runoff, discharges from barges and other vessels, and domestic and industrial waste.
- 500.2 An activity which this chapter regulates shall be consistent with the purposes of this chapter.
- 500.3 The purposes of this chapter are:
- (a) To prevent and control the pollution of the Potomac River and its tributaries, and the waters of the District;
 - (b) To regulate land-disturbing activities for the protection of District waterbodies;
 - (c) To regulate major substantial improvement activities for the protection of District waterbodies;
 - (d) To prevent accelerated soil erosion and sedimentation;
 - (e) To prevent sediment deposit in the Potomac River and its tributaries, including the District sewer system; and
 - (f) To control health hazards due to pollution of the Potomac River and its tributaries.
- 500.4 No person may commence an activity that this chapter regulates without obtaining an approval that this chapter requires.
- 500.5 A person's compliance with this chapter shall not relieve a person of responsibility for damage to a person or property.
- 500.6 No Department action under this chapter shall impose liability upon the District of Columbia for damage to a person or property.
- 500.7 A person who is regulated under this chapter may authorize an agent to act for that person; however, authorizing an agent does not change or eliminate that person's duty, responsibility, or liability.

- 500.8 The Department may approve alternative media, including electronic media, for a document that this chapter requires to be submitted in Mylar, paper, or other specific media:
- (a) If the alternative method will likely be as reliable for the Department's use and less expensive for an applicant; or
 - (b) Upon good cause shown.
- 500.9 An infiltration test does not require Departmental approval for groundwater quality protection provided that:
- (a) No test shall go to a depth of greater than fifteen (15) feet below the ground surface;
 - (b) If a person conducting the testing smells or sees soil or groundwater contamination in the area of a test during or after the test, the boring or other hole made for the test shall be filled in accordance with best practices for wellhead protection, unless it is determined as a result of laboratory analysis that the groundwater or soil is not contaminated, as defined in the District of Columbia Brownfield Revitalization Amendment Act of 2000, effective June 13, 2001, as amended (D.C. Law 13-312; D.C. Official Code §§ 8-631 *et seq*) or the Underground Storage Tank regulations at 20 DCMR Chapter 62; and
 - (c) A Professional Engineer licensed in the District of Columbia shall certify the infiltration rate and that the test was carried out in compliance with this section and accepted professional standards.
- 500.10 Except as otherwise provided in this chapter, all submittals to the Department shall be made through the Department's submittal database, which is available on the Department's website from any device with an internet connection. Instructions for submittal of any printed plans required by this chapter will be provided on the Department's website, <https://doee.dc.gov>, or through the Department's submittal database.
- 500.11 A person shall not create or use a submittal database account associated with:
- (a) The name or email address of another person; or
 - (b) An email address shared with one or more other people.

501 FEES

501.1 Each year, the fees in this section shall increase by the percentage, if any, by which the Urban Consumer Price Index for June of the calendar year exceeds the Urban Consumer Price Index for June of the previous year. Each inflation adjustment shall be posted to the Department's website. The fee rates shown in this section went into effect on March 11, 2022, based on the Urban Consumer Price Index for June of 2021.

501.2 An applicant shall pay supplemental and revision review fees as follows:

- (a) An applicant shall pay a supplemental review fee for each Department review after the review for the first resubmission of a plan, and the fee shall be paid before a building permit may be issued, except that a supplemental review fee for a review specified for a design phase under the Maximum Extent Practicable (MEP) process described in the Department's Stormwater Management Guidebook (SWMG) shall not be required for a project or portion of a project entirely in the existing public right-of-way (PROW); and
- (b) An applicant shall pay a revision review fee for each Department review for a revised submittal after the Department's approval of a plan. The fee shall be paid following the Department's review. If the Department determines that the applicant's submittal is a new plan instead of a revision to an approved plan, the applicant shall pay an initial, final, or supplemental review fee as appropriate. A submittal is a new plan if, relative to the approved plan, it involves:
 - (1) Changes to the number, type, or location of stormwater management practices;
 - (2) Changes to the number, type, or location of Green Area Ratio landscape elements;
 - (3) Changes to the size or location of a project; or
 - (4) Other substantial changes to the project design.

501.3 An applicant for Department approval of a soil erosion and sediment control plan shall pay the fees in Table 1 for Department services at the indicated time, as applicable:

Table 1. Fees for Soil Erosion and Sediment Control Plan Review (as of March 11, 2022)

Payment Type	Payment Requirement	Fees by Land Disturbance Type		
		Residential	All Other	
		≥ 50 ft ² and < 500 ft ²	≥ 50 ft ² and < 5,000 ft ²	≥ 5,000 ft ²
Initial	Due upon filing for building permit	\$55.20	\$480.26	\$1,181.32
Final	Due before building permit is issued	n/a		
• Clearing and grading > 5,000 ft ²				
• Excavation base fee		n/a		\$480.26
• Excavation > 66 yd ³		\$0.11 per yd ³		
• Filling > 66 yd ³		\$0.11 per yd ³		
Supplemental	Due before building permit is issued	\$110.40	\$110.40	\$1,104.04
Revision	Due upon review	\$55.20	\$55.20	\$552.02

501.4 An applicant for Department approval of a Stormwater Management Plan (SWMP) shall pay the fees in Table 2 for Department services at the indicated time:

Table 2. Fees for Stormwater Management Plan Review (as of March 11, 2022)

Payment Type	Payment Requirement	Fees by Combined Area of Land Disturbance and Substantial Improvement Building Footprint	
		≥ 5,000 ft ² and ≤ 10,000 ft ²	> 10,000 ft ²
Initial	Due upon filing for building permit	\$3,643.32	\$6,734.62
Final	Due before building permit is issued	\$1,656.06	\$2,649.69
Supplemental	Due before building permit is issued	\$1,104.04	\$2,208.07
Revision	Due upon review	\$552.02	\$1,104.04

501.5 A person requesting a service from the Department that is listed in Table 3 shall pay the corresponding fee before:

- (a) Receiving the service from the Department, if a building permit is not required; or
- (b) The building permit is issued, if a building permit is required.

501.6 In Table 3, the applicant's corresponding fee:

- (a) Is required for Department review of a Stormwater Pollution Prevention Plan if the site is regulated under the Construction General Permit issued by Region III of the United States Environmental Protection Agency; and

- (b) Is not required for Department review of an application for relief from extraordinarily difficult site conditions for a plan to construct a single-family or two (2) family house as affordable housing pursuant to § 518.14.

Table 3. Additional Fees (as of March 11, 2022)

Review or Inspection Type	Fees by Combined Area of Land Disturbance and Substantial Improvement Building Footprint	
	≤ 10,000 ft ²	> 10,000 ft ²
Soil characteristics inquiry	\$165.61	
Geotechnical report review	\$77.28 per hour	
Pre-development review meeting	No charge for first hour \$77.28 per additional hour	
After-hours inspection fee	\$55.20 per hour	
Stormwater pollution plan review	\$1,214.44	
Dewatering pollution reduction plan review	\$1,214.44	\$2,318.48
Application for relief from extraordinarily difficult site conditions	\$552.02	\$1,104.04

501.7 An applicant for Department approval of an SWMP for a project being conducted solely to install a Best Management Practice (BMP) or land cover for Department certification of a Stormwater Retention Credit (SRC) shall pay the fees in Table 4 for Department services at the indicated time, except that:

- (a) A person who is paying a review fee in Table 2 for a major regulated project shall not be required to pay a review fee in Table 4 for the same project; and
- (b) A person who has paid each applicable fee to the Department for its review of an SWMP shall not be required to pay a review fee in Table 4 for the same project:

Table 4. Fees for Review of Stormwater Management Plan to Certify Stormwater Retention Credits (as of March 11, 2022)

Payment Type	Payment Requirement	Fees by Combined Area of Land Disturbance and Substantial Improvement Building Footprint	
		≤ 10,000 ft ²	> 10,000 ft ²
Initial	Due upon filing for building permit	\$634.82	\$938.43
Final	Due before building permit is issued	\$138.00	\$220.81
Supplemental	Due before building permit is issued	\$552.02	
Revision	Due upon review	\$276.01	

- 501.8 A person who requires Departmental approval of an as-built SWMP for SRC certification for a BMP or land cover for which a plan review fee has not been paid to the Department shall pay each applicable fee for initial and final SWMP review in Table 4.
- 501.9 A person who requires the Department's review of a proposed or as-built SWMP solely for the purpose of applying for a stormwater fee discount under this chapter shall not be required to pay a plan review fee to the Department for that project, except that a person who subsequently applies for SRC certification for the same project shall pay each applicable fee for initial and final plan review before the Department will consider the application for SRC certification.
- 501.10 An applicant for Department approval of a Green Area Ratio plan shall pay the fees in Table 5 for Department services at the indicated time:

Table 5. Fees for Review of Green Area Ratio Plan (as of March 11, 2022)

Payment Type	Payment Requirement	Fees by Combined Area of Land Disturbance and Substantial Improvement Building Footprint	
		≤ 10,000 ft ²	> 10,000 ft ²
Initial	Due upon filing for building permit	\$1214.44	\$2,244.87
Final	Due before building permit is issued	\$552.02	\$883.23
Supplemental	For reviews after first resubmission	\$368.01	\$736.02
Revision	Due upon review	\$184.05	\$368.01

- 501.11 The in-lieu fee (as of March 11, 2022) shall be three dollars and eighty-six cents (\$3.86) per year for each gallon of Off-Site Retention Volume (Offv), and the Department shall use these fees to construct green infrastructure, as follows:
- (a) In-lieu fees paid for regulated projects in the Green Combined Sewer System (CSS) area shall be used to fund projects in the Green CSS area; and
 - (b) In-lieu fees paid for regulated projects in combined sewersheds shall not be used to fund projects that are located in the Gray CSS area.
- 501.12 The administrative late fee for an in-lieu fee payment shall be ten percent (10%) of the late payment.
- 501.13 A person shall pay the fees in Table 6 for the indicated resource before receipt of the printed resource:

Table 6. Fees for Printed Resources (as of March 11, 2022)

Paper Copies of Documents	Cost
District Standards and Specifications for Soil Erosion and Sediment Control	\$55.20
District Stormwater Management Guidebook	\$96.51
District Erosion and Sediment Control Standard Notes and Details (24 in x 36 in)	\$27.60
District Erosion and Sediment Control Manual	\$46.04
District Erosion and Sediment Control Field Handbook	\$27.60

501.14 If a project that consists entirely of single- and two (2) family affordable houses is eligible for consideration under the practicable process described in § 518.14 or satisfies less than fifty percent (50%) of the Stormwater Retention Volume (SWRV) requirement on-site as described in §§ 520.4(a)(2) or 522.5(a)(2), then the applicant for Department approval of an SWMP shall pay the reduced fees in Table 7 for Department services at the indicated time, as applicable, except that:

- (a) A person who is paying a review fee in Table 2 for a major regulated project shall not be required to pay a review fee in Table 7 for the same project; and
- (b) A person who has paid each applicable fee to the Department for its review of an SWMP shall not be required to pay a review fee in Table 7 for the same project:

Table 7. Reduced Fees for Stormwater Management Plan Review (as of March 11, 2022)

Payment Type	Payment Requirement	Fees by Combined Area of Land Disturbance and Substantial Improvement Building Footprint	
		≥ 5,000 ft² and ≤ 10,000 ft²	> 10,000 ft²
Initial	Due upon filing for building permit	\$2,732.49	\$5,050.97
Final	Due before building permit is issued	\$1,242.04	\$1,987.27
Supplemental	Due before building permit is issued	\$828.03	\$1,656.06
Revision	Due upon review	\$414.02	\$828.03

501.15 If a person chooses to pay a fee in this chapter through an online payment platform, the fee shall be two and thirty-six hundredths percent (2.36%) higher.

502 DUTY TO COMPLY

502.1 A person who engages in an activity that this chapter regulates shall comply with the provisions of this chapter.

502.2 A person shall conduct all work in accordance with each submittal approved by the Department, including each plan and approved change.

502.3 Each provision of an approved plan shall be complied with as a distinct provision of this chapter.

502.4 A person shall promptly notify the Department of an actual or likely material change in the performance provided for in an approved SWMP, including a material change in the volume of stormwater flowing into a Best Management Practice (BMP), a shared BMP, or a land cover.

502.5 A person shall undertake a reasonable inquiry to confirm that the facts stated and calculations made are true and correct for each communication with the Department under this chapter.

502.6 No person shall negligently, recklessly, or knowingly make a false statement in a communication with the Department.

503 INSPECTIONS, NOTICES OF WORK, AND APPROVALS OF CHANGES

503.1 The Department may conduct an inspection of an activity regulated under this chapter, including emergency work that may otherwise be exempt, to ensure compliance with this chapter.

503.2 The Department may require a change to an approved plan if the Department determines that a discrepancy between site conditions and the approved plan makes the plan inadequate to comply with the requirements of this chapter.

503.3 A person may not change an approved plan or its implementation without Department approval, as follows:

- (a) If the change is substantial, the person shall resubmit the revised plan to the Department for approval in accordance with this chapter; and
- (b) If the change is not substantial, the person may secure written approval from the Department in the field or at the Department's office.

503.4 For the purposes of this chapter, a substantial change in an approved plan is a change in design, specification, construction, operation, or maintenance that the Department determines:

- (a) May result in a failure to comply with a requirement of this chapter; or
- (b) Has a significant effect on the discharge of pollutants to the District's waters.

- 503.5 The Department may require an additional inspection at a particular stage of construction by specifying that requirement in:
- (a) The approved plan;
 - (b) The preconstruction inspection report; or
 - (c) The Department's report of the preconstruction meeting.
- 503.6 No person may proceed with work past a stage of construction that the Department has identified as requiring an inspection unless:
- (a) The Department's inspector has issued an "approved" or "passed" report;
 - (b) The Department has approved a plan modification that eliminates the inspection requirement; or
 - (c) The Department otherwise eliminates or modifies the inspection requirement in writing.
- 503.7 A person shall communicate with the Department:
- (a) In order to schedule a preconstruction meeting or field visit before commencement of a land-disturbing activity, contact the Department at least three (3) business days before the start of the land-disturbing activity;
 - (b) In order to schedule a preconstruction inspection before beginning construction of a Best Management Practice (BMP), contact the Department at least three (3) business days before the start of the construction;
 - (c) In order to schedule an inspection required for a stage of construction or other construction event, contact the Department at least three (3) business days before the anticipated inspection;
 - (d) For the completion of a land-disturbing activity, give notice to the Department within two (2) weeks of completion of the activity; and
 - (e) For the completion of a BMP, and to request a final construction inspection, give the Department one (1) week's notice.
- 503.8 The Department shall make reasonable efforts to accommodate a request for inspection outside of the Department's normal business hours if the request:
- (a) Is made during the Department's normal business hours;

- (b) Includes the information the Department requires, including the matters to be inspected, the location of the site work to be inspected, and details for site access; and
 - (c) Includes payment or proof of payment of the after-hours inspection fee.
- 503.9 The Department shall determine whether work, construction, and maintenance complies with each approved plan, including conducting a final construction inspection and ongoing maintenance inspections of each BMP, land cover, and the site.
- 503.10 The Department may require inspections, on a periodic or as-needed basis, of a BMP, land cover, and the site to ensure that maintenance is sufficient to achieve performance or eligibility requirements and to avoid harm to the environment or public health.
- 503.11 A person shall allow the Department, upon presentation of Department credentials, to:
 - (a) Enter premises where a practice, measure, or activity subject to this chapter is located or conducted, or where required records are kept, including locations where a retention BMP or land cover is voluntarily installed to generate a Stormwater Retention Credit or receive a stormwater fee discount;
 - (b) Access and copy a required record;
 - (c) Inspect a site, practice, measure, or activity subject to this chapter, including to verify sufficient maintenance; and
 - (d) Conduct sampling, testing, monitoring, or analysis.
- 503.12 The Department may require as a precondition to its approval of an inspection that the applicant:
 - (a) Make available to the Department for the purposes of the inspection on site, or at the Department's offices, the professional engineer responsible for certifying the "as-built" plans; and
 - (b) Secure the seal and signature of this professional engineer certifying that the as-built plans comply with this chapter.
- 503.13 Upon notice, a person shall promptly correct work which the Department has found fails to comply with an approved plan.

503.14 The Department shall not approve the issuance of a certificate of occupancy for a building until the Department has determined that the approved stormwater management plan for the building site has been implemented for:

- (a) On-site stormwater management; and
- (b) Required off-site retention.

504 STOP WORK ORDERS

504.1 Upon notice from the Department that it has determined that one (1) or more of the following conditions exists, a person shall stop identified work immediately until the situation is corrected:

- (a) Noncompliance with a notice that requires corrective action;
- (b) Material false statement or misrepresentation of fact in an application that the Department approved for the project;
- (c) During the project, the license of a contractor or subcontractor is void, has expired, or has been suspended or revoked;
- (d) Work involving an activity regulated under this chapter is being conducted:
 - (1) In violation of a provision of this chapter;
 - (2) In an unsafe manner; or
 - (3) In a manner that poses a threat to the public health or the environment.

504.2 A stop work order shall:

- (a) Have immediate effect;
- (b) Be issued in writing; and
- (c) Be provided to:
 - (1) The person who has received an approval under this chapter;
 - (2) The person doing the work; or

- (3) The person on site who is responsible for the work.

504.3 The stop work order shall identify the:

- (a) Address and location of the work;
- (b) Corrective action or cessation required;
- (c) Time period required to complete corrective action;
- (d) Reason for the order;
- (e) Person issuing the order, including telephone contact, and, if available, email or other electronic means of address; and
- (f) Steps to be taken to challenge or appeal the order.

504.4 The Department shall:

- (a) Post the stop work order at the property; and
- (b) Send the stop work order in a manner likely to ensure receipt, including first class mail, fax with return receipt, email with return read receipt, or hand-delivery with certification of service.

504.5 No person shall remove a stop work order posted at a site without the Department's written approval.

504.6 A person who continues work stopped by an order shall be in violation of this chapter for each day on which work is conducted, except for work:

- (a) Required immediately to stabilize the activity and place the property in a safe and secure condition;
- (b) That the Department orders; or
- (c) Required immediately to eliminate an unsafe condition or threat to the public health or the environment.

505 VIOLATIONS AND ENFORCEMENT PROCEDURES

505.1 Each instance or day of a violation of each provision of this chapter shall be a separate violation.

505.2 Each separate violation of each provision may be subject to:

- (a) A criminal fine and penalty, including imprisonment, and costs; and
- (b) Either:
 - (1) A judicial civil penalty, order for corrective action, and order for damages and related costs, expenses, and fees; or
 - (2) An administrative civil fine, penalty, suspension of an approval, suspension of a permit, corrective action, order to comply with this chapter, and order for related costs, expenses, and fees.

505.3 The District may seek criminal prosecution if a person violates a provision of this chapter pursuant to:

- (a) The Water Pollution Control Act of 1984 (WPCA), effective March 16, 1985, as amended (D.C. Law 5-188; D.C. Official Code § 8-103.16 (2008 Repl. & 2012 Supp.)); and
- (b) The Soil Erosion and Sedimentation Control Act of 1977, effective September 28, 1977 (D.C. Law 2-23; 24 DCR 792), as amended by the Soil Erosion and Sedimentation Control Amendment Act of 1994, effective August 26, 1994, as amended (D.C. Law 10-166; 41 DCR 4892; 21 DCMR §§ 500-15).

505.4 The District may bring a civil action in the Superior Court of the District of Columbia or any other court of competent jurisdiction, for civil penalties, damages, and injunctive or other appropriate relief pursuant to D.C. Official Code §§ 8-103.17(d) and 8-103.18.

505.5 As an alternative to a civil action, the Department may impose an administrative civil fine, penalty, fee, and order for costs and expenses by following the procedures of Titles I-III of the Department of Consumer and Regulatory Affairs Civil Infractions Act of 1985, effective October 5, 1985, as amended (D.C. Law 6-42; D.C. Official Code §§ 2-1801 *et seq.* (2007 Repl. & 2012 Supp.)) (Civil Infractions Act), except that each reference in the Civil Infractions Act to an administrative law judge (ALJ) shall mean an ALJ of the Office of Administrative Hearings (OAH) established pursuant to the Office of Administrative Hearings Establishment Act of 2001, effective March 6, 2002, as amended (D.C. Law 14-76; D.C. Official Code, §§ 2-1831.01 *et seq.* (2007 Repl. & 2012 Supp.)).

505.6 Except when otherwise required by statute, an administrative civil fine shall be calculated according to the schedule of fines for violations of this chapter that has been approved pursuant to the Civil Infractions Act, D.C. Official Code § 2-1801.04.

- 505.7 Administrative adjudication of a civil violation of a provision of this chapter shall be conducted by OAH, pursuant to its rules and procedures.
- 505.8 An administrative adjudicator of a civil violation of a provision of this Chapter shall have the same power, authority, and jurisdiction with respect to the matter before it as does the Department.
- 505.9 Neither a criminal prosecution nor the imposition of a civil fine or penalty shall preclude an administrative or judicial civil action for injunctive relief or damages, including an action to prevent unlawful construction or to restrain, correct, or abate a violation on or about any premises, or to recover costs, fees, or money damages, except that a person shall not, for the same violation of the WPCA, be assessed a civil fine and penalty through both the judicial and the administrative processes.
- 505.10 With respect to a violation of a provision of this chapter, the Department may also pursue and obtain an internal remedy by:
- (a) Advising a person of a violation through the use of a DDOE internal Notice of Violation; and
 - (b) Issuing and addressing a violation through the use of a DDOE internal Notice of Infraction.
- 505.11 If a term in a provision of this section conflicts with a provision in another section of this chapter, the term in the provision of this section controls.

506 ADMINISTRATIVE APPEALS AND JUDICIAL REVIEW

- 506.1 With respect to a matter governed by this chapter, a person adversely affected or aggrieved by an action of the Department shall exhaust administrative remedies by timely filing an administrative appeal with, and requesting a hearing before, the Office of Administrative Hearings (OAH), established pursuant to the Office of Administrative Hearings Establishment Act of 2001, effective March 6, 2002, as amended (D.C. Law 14-76; D.C. Official Code, §§ 2-1831.01 *et seq.* (2007 Repl. & 2012 Supp.)), or OAH's successor.
- 506.2 For the purposes of this chapter, an action of the Department taken with respect to a person shall include:
- (a) Signed settlement of an internal Notice of Infraction (NOI);
 - (b) Approval;

- (c) Denial;
- (d) Compliance order;
- (e) NOI;
- (f) Determination;
- (g) Cease and desist order;
- (h) Stop work order;
- (i) Order to show cause; or
- (j) Other action of the Department which constitutes the consummation of the Department's decision-making process and is determinative of a person's rights or obligations.

506.3 For the purposes of this chapter, a DDOE internal Notice of Violation or NOI:

- (a) Shall not be an action of the Department that a person may appeal to OAH;
- (b) Shall be responded to within fifteen (15) calendar days of service of the notice, including a written statement containing the grounds, if any, for opposition; and
- (c) Shall not constitute a waiver of compliance or tolling of a period for a fine or penalty.

506.4 If a person fails to agree to or settle an internal NOI or otherwise denies a claim stated in an internal NOI:

- (a) The Department may cancel the internal NOI and file an NOI for adjudication with OAH; or
- (b) The person may request adjudication by OAH.

506.5 A person aggrieved by an action of the Department shall file a written appeal with OAH within the following time period:

- (a) Within fifteen (15) calendar days of service of the notice of the action; or

- (b) Another period of time stated specifically in the section for an identified Department action.

506.6 Notwithstanding another provision of this section, the Department may toll a period for filing an administrative appeal with OAH if it does so explicitly in writing before the period expires.

506.7 OAH shall:

- (a) Resolve an appeal or an NOI by:
 - (1) Affirming, modifying, or setting aside the Department's action complained of, in whole or in part;
 - (2) Remanding for Department action or further proceedings, consistent with OAH's order; or
 - (3) Providing such other relief as the governing statutes, regulations and rules support;
- (b) Act with the same jurisdiction, power, and authority as the Department may have for the matter currently before OAH; and
- (c) By its final decision render a final agency action which will be subject to judicial review.

506.8 The filing of an administrative appeal shall not in itself stay enforcement of an action; except that a person may request a stay according to the rules of OAH.

506.9 The burden of proof in an appeal of an action of the Department shall be allocated to the person who appeals the action, except the Department shall bear the ultimate burden of proof when it denies a right.

506.10 The burden of production in an appeal of an action of the Department shall be allocated to the person who appeals the action, except that it shall be allocated:

- (a) To the Department when a party challenges the Department's suspension, revocation, or termination of a:
 - (1) License;
 - (2) Permit;
 - (3) Continuation of an approval; or

(4) Other right;

(b) To the party who asserts an affirmative defense; and

(c) To the party who asserts an exception to the requirements or prohibitions of a statute or rule.

506.11 The final OAH decision on an administrative appeal shall thereafter constitute the final, reviewable action of the Department, and shall be subject to the applicable statutes and rules of judicial review for OAH final orders.

506.12 An action for judicial review of a final OAH decision shall not be a *de novo* review, but shall be a review of the administrative record alone and not duplicate agency proceedings or hear additional evidence.

506.13 Nothing in this chapter shall be interpreted to:

(a) Provide that a filing of a petition for judicial review stays enforcement of an action; or

(b) Prohibit a person from requesting a stay according to the rules of the court.

506.14 If a term in a provision of this section conflicts with a provision in another section of this chapter, the term in the provision of this section controls.

507 PUBLIC HEALTH HAZARDS

507.1 The Mayor may post notice on the shores of a District waterbody of a related hazard to public health or safety.

507.2 Upon determination that a direct or indirect contact with a waterbody of the District, including immersion, fishing, or boating, poses a hazard to the public health or safety, the Department may take action deemed necessary to protect the public health until the hazard has ended, including a prohibition of all recreational activities on the affected waters of the District.

507.3 If the Department takes action to protect the public health from a hazard, the Department shall:

(a) Notify the Council of the District of Columbia immediately of the action; and

(b) Notify the public through media most likely to effectively advise of the hazard, including:

- (1) Newspapers of general circulation in the District;
- (2) Radio stations serving the District; and
- (3) Electronic media.

- 507.4 An action taken by the Department to protect public health from a hazard shall remain in effect until rescinded, or for a period of two (2) weeks, whichever is shorter.
- 507.5 The Department may extend the life of an action taken to protect public health from a hazard beyond a two (2) week period, only if the Council of the District of Columbia, by resolution, so approves.
- 507.6 From District waters designated as a public health hazard, no person shall operate any pumping device or water vessel so as to generate a spray which falls upon the adjacent shore, except as authorized by the Mayor for good cause shown.

508 PREVENTION OF POLLUTION BY WATERCRAFT

- 508.1 The discharge into the Potomac River or its tributaries of any waste, whether liquid or solid, treated or untreated, from any vessel berthed at a marina, dock, or basin, is prohibited.
- 508.2 Each marina, dock, or basin where a vessel or other watercraft is berthed, except for facilities that are owned by the United States Department of Defense and not generally open to the public, shall be provided with water closets, urinals, and lavatories which are separate for each sex, readily available, and in sufficient numbers to meet the needs of persons using the marina facilities.
- 508.3 Each marina, dock, or basin where vessels or other watercraft suitable for overnight accommodations are berthed shall be equipped with suitable bathing facilities.
- 508.4 The Department shall approve the facilities required under this section to be acceptable for the purposes set forth.
- 508.5 New or existing marinas within the Anacostia Waterfront Development Zone shall comply with the program elements outlined in the current version of the Clean Marina Guidebook issued by the National Park Service, and the owner of the marina shall submit a copy of its Clean Marina Checklist and any supporting documentation to the Department.

509 CORRECTION OF CURRENT EROSION PROBLEMS

- 509.1 In instances where erosion is occurring as the result of natural forces or past land-disturbing activities, but in the absence of current land-disturbing activities, the Department shall have the authority to inspect the site and to order the property owner to correct the erosion problem.
- 509.2 Each order to correct existing problems shall specify the general corrective measures to be applied.
- 509.3 The Department shall maintain and provide to homeowners who are required to correct erosion problems information relating to possible sources of financial assistance for the project.

510 – 515 [RESERVED]

516 STORMWATER MANAGEMENT: APPLICABILITY

- 516.1 No person shall engage in a major regulated project unless the Department has issued an approved stormwater management plan (SWMP) for the project.
- 516.2 Application for Department approval of a SWMP for a major regulated project shall be made by at least one (1) of the following persons:
- (a) The owner of a property on which a major regulated project is planned;
 - (b) The lessee who undertakes a major regulated project, with the owner's permission, on a property that the lessee has leased; or
 - (c) The agent of the owner or lessee.
- 516.3 In preparing and implementing a SWMP, or a part of a SWMP, a person must comply with:
- (a) This chapter;
 - (b) The terms and conditions of the SWMP once approved; and
 - (c) The Department's orders and directions to achieve compliance with the approved SWMP.
- 516.4 A major regulated project shall comply with the requirements and procedures of this chapter unless a provision exempts compliance.

- 516.5 The owner of a site on which a major regulated project occurs and each person to whom the owner has designated responsibility for management of the site shall ensure that the site complies with the approved SWMP for the site until site redevelopment that follows a Department-approved SWMP occurs.
- 516.6 Responsibility for compliance with an approved SWMP for a site shall pass to a subsequent owner of the site and each person to whom that owner designates responsibility for the management of the site until site redevelopment that follows a Department-approved SWMP occurs.
- 516.7 No person shall engage in a project for the generation of a Stormwater Retention Credit unless the Department has issued an approved SWMP for the project, except as otherwise provided in this chapter.

517 STORMWATER MANAGEMENT: EXEMPTIONS

- 517.1 If a major substantial improvement activity demonstrates that it is not part of a common plan of development with a major land-disturbing activity, then it is exempt from § 520 (Stormwater Management: Performance Requirements For Major Land-Disturbing Activity).
- 517.2 A land-disturbing or substantial improvement activity shall be exempt from the requirements of §§ 520 (Stormwater Management: Performance Requirements For Major Land-Disturbing Activity), 522 (Stormwater Management: Performance Requirements For Major Substantial Improvement Activity), and 529 (Stormwater Management: Covenants and Easements) if the Department determines that the activity is conducted solely to install a Best Management Practice (BMP) or land cover that retains stormwater for one (1) or more of the following purposes:
- (a) To generate Stormwater Retention Credits (SRCs);
 - (b) To earn a stormwater fee discount under the provisions of this chapter;
 - (c) To voluntarily reduce stormwater runoff in a manner that would be eligible to either generate SRCs or a stormwater fee discount, even if the person conducting the activity does not intend to apply to either program;
 - (d) To provide for off-site retention through in-lieu fee payments;
 - (e) To comply with a Watershed Implementation Plan established under a Total Maximum Daily Load for the Chesapeake Bay; or
 - (f) To reduce Combined Sewer Overflows (CSOs) in compliance with a court-approved consent decree, including court-approved modifications,

for reducing CSOs in the District, or in compliance with a National Pollutant Discharge Elimination System permit.

- 517.3 A land-disturbing activity that consists solely of cutting a trench for utility work and related replacement of sidewalks and ramps is exempt from the stormwater management requirements of this chapter if it does not involve the reconstruction of a roadway from curb to curb or curb to centerline of roadway.
- 517.4 Land disturbance conducted solely to respond to an emergency need to protect life, limb, or property or to conduct emergency repairs shall be exempt from the requirement to comply with the stormwater management provisions of §§ 516-533 of this chapter.
- 517.5 For the purposes of calculating the cost of a major substantial improvement to a building or structure, an applicant:
- (a) Shall include the cost to replace infrastructure commonly found in a building or structure, such as mechanical, electrical, and plumbing equipment, which includes the boilers and furnaces that are part of the heating and cooling system; and
 - (b) May exclude the cost to install solar energy generation and replace manufacturing and industrial equipment, including pumps, valve chambers, and wastewater treatment facilities.
- 517.6 A land-disturbing activity in the existing Public Right-of-Way (PROW) is exempt from the requirements in § 520 (Performance Requirements for Major Land-Disturbing Activity) for maintaining post-development peak discharge rates.
- 517.7 The portion of a land-disturbing activity that consists of the installation or replacement of athletic playing fields, permeable athletic tracks, or permeable playground surfaces shall be exempt from the stormwater management requirements of this chapter, provided that:
- (a) The land-disturbing activity complies with the post-development peak discharge performance requirements for major land-disturbing activities as documented on:
 - (1) A soil erosion and sediment control plan approved by the Department that shows the project is designed according to the drainage layer and orifice sizing specifications described in the Department's Stormwater Management Guidebook (SWMG); or

- (2) A Stormwater Management Plan (SWMP) approved by the Department;
- (b) The pre-project land cover is compacted cover or impervious cover;
- (c) The athletic playing field, permeable athletic track, or permeable playground surface is located at a school or public park and is made available for use by the general public; and
- (d) If the athletic playing field, permeable athletic track, or permeable playground surface drains to a BMP, any gallon retained by the BMP shall only be eligible for SRC certification if the gallon is retained in excess of the stormwater retention and treatment performance requirements of this chapter for the area that is otherwise exempt pursuant to this subsection.

518 STORMWATER MANAGEMENT: PLAN REVIEW PROCESS

- 518.1 In order for the Department to approve a person's proposed stormwater management plan (SWMP), the person and the Department shall undertake the process described in this section.
- 518.2 The Department shall notify an applicant of each determination in the plan review process.
- 518.3 The owner of a site shall submit an initial application for the Department's approval of a major regulated project in accordance with § 500.10, including:
- (a) One (1) electronic set of the SWMP, certified by a professional engineer licensed in the District of Columbia;
 - (b) Each supporting document specified in the Department's SWMG; and
 - (c) If requested by the Department, one (1) paper set of the SWMP, certified by a professional engineer licensed in the District of Columbia.
- 518.4 The Department shall make an initial determination if an application is complete and:
- (a) Accept the application for review;
 - (b) Accept the application for review, with conditions; or
 - (c) Reject the application for review, without prejudice to re-submission.

- 518.5 Upon accepting an application for review, the Department shall determine if:
- (a) The application requires additional information to determine whether or not it meets the requirements for approval;
 - (b) The application meets the requirements for approval;
 - (c) The application meets the requirements for approval, with conditions; or
 - (d) The application does not meet the requirements for approval and shall be disapproved, without prejudice to re-submission.
- 518.6 If the applicant resubmits a SWMP after making changes, the re-submission shall contain a list of the changes made.
- 518.7 The Department may conduct one (1) or more supplemental reviews of a re-submitted application.
- 518.8 After receiving notification that an application meets the requirements for the Department's approval, the applicant shall submit a final preconstruction application to the Department's submittal database in accordance with § 500.10, including:
- (a) The complete electronic SWMP, certified by a professional engineer licensed in the District of Columbia; and
 - (b) Each supporting document specified in the Department's SWMG.
- 518.9 After the applicant submits a final preconstruction application that meets the requirements for the Department's approval, the Department shall approve the plan electronically through the Department's submittal database.
- 518.10 The Department shall provide the applicant with access to the approved plan in the Department's submittal database after the applicant submits proof to the Department:
- (a) That the declaration of covenants and each applicable easement has been filed at the Recorder of Deeds; and
 - (b) That each applicable fee for Department services has been paid.
- 518.11 The Department may provide the applicant with access to the approved plan in the Department's submittal database before the declaration of covenants is filed if:

- (a) The Government of the District of Columbia has conditioned transfer of the property upon the successful acquisition of an approved SWMP or building permit; and
 - (b) The declaration is to be filed at closing.
- 518.12 Within twenty-one (21) days of the Department's final construction inspection, the applicant shall submit an as-built package to the Department's submittal database, including:
 - (a) The complete as-built SWMP certified by a professional engineer licensed in the District of Columbia; and
 - (b) Each supporting document specified in the Department's SWMG.
- 518.13 For a project consisting entirely of work in the public right of way, the requirement to submit an as-built SWMP can be met by the submission of a Record Drawing that:
 - (a) Documents the as-built construction of best management practices and related stormwater infrastructure; and
 - (b) Is certified by an officer of the contracting company for the project.
- 518.14 For single-family or two-family houses constructed as affordable housing, the Department may approve a SWMP that does not achieve the stormwater management performance requirements of this chapter, provided that:
 - (a) All of the following conditions are satisfied:
 - (1) Land-disturbing activity on any single record lot or tax lot is less than five thousand square feet (5,000 ft²);
 - (2) The applicant submits a request to the Department using the procedure for a request for relief from extraordinarily difficult site conditions, as described in § 526;
 - (3) The Department reviews the request using the same procedure by which the Department reviews and makes determinations for relief from extraordinarily difficult site conditions, as described in § 526; and
 - (4) The Department determines that the project takes all practicable steps to comply with the stormwater management performance requirements of this chapter; and

- (b) Within thirty (30) days of sale of the house that received SWMP approval pursuant to § 518.14, the purchaser shall provide proof to the Department that the purchaser's household income is no greater than eighty percent (80%) of Area Median Income. If the owner fails to provide proof, the Department may require full compliance with the stormwater management performance requirements.

518.15 For structures at public parks and trails for non-motorized vehicles, the Department may approve a SWMP that does not achieve the stormwater management performance requirements of this chapter, provided that:

- (a) The pre-project land cover is impervious cover or compacted cover;
- (b) The area consists solely of:
 - (1) Pavilions, sheds, dugouts, or similar structures located at public parks that are less than two thousand five hundred square feet (2,500 ft²) each and do not include typical building infrastructure to support year-round use; or
 - (2) Trails for pedestrians or non-motorized vehicles for projects that do not consist of reconstruction of a roadway and its adjacent sidewalks;
- (c) The applicant submits to the Department with the SWMP:
 - (1) A detailed explanation of each opportunity for on-site installation of a BMP that was considered and rejected, and the reason for each rejection;
 - (2) Evidence of site conditions limiting each opportunity for a BMP, including, as applicable:
 - (A) Data on soil and groundwater contamination;
 - (B) Data from percolation testing;
 - (C) Documentation of the presence of utilities requiring impermeable protection or a setback;
 - (D) Evidence of the applicability of a statute, regulation, court order, pre-existing covenant, or other restriction having the force of law;

- (E) The usability of space to achieve the proposed project purpose;
 - (F) Lack of the minimum CDA required for a BMP to be effective;
 - (G) The difficulty of conducting BMP maintenance; and
 - (H) Evidence of the sensitivity of receiving waterbody to stormwater runoff;
- (3) Evidence of the likelihood of runoff from the site to cause to erosion of land, transport of sediment, nuisance flooding; and
- (d) The Department determines that the project takes all practicable steps to comply with the stormwater management performance requirements of this chapter.

519 STORMWATER MANAGEMENT: PLAN

519.1 A Department-approved stormwater management plan (SWMP) shall:

- (a) Govern all construction for which stormwater management is required;
- (b) Govern all applicable maintenance activities; and
- (c) Demonstrate compliance with this chapter.

519.2 A submitted SWMP and supporting documentation shall contain information sufficient for the Department to determine whether the SWMP complies with this chapter including:

- (a) Existing site conditions, including the identification and location of each existing Best Management Practice (BMP) and whether it will remain on the site and in use or will be removed;
- (b) Proposed site design;
- (c) Each land use proposed for the site;
- (d) Identification and location of each proposed BMP, including geographic coordinates;
- (e) Design and performance of each BMP for stormwater retention, detention, and treatment;

- (f) Conveyance capacity of stormwater infrastructure;
- (g) Environmental characteristics of the site;
- (h) Pre- and post-development hydrologic computations, including:
 - (1) Calculation of required stormwater management volume for:
 - (A) The entire site; and
 - (B) Each individual drainage area; and
 - (C) On-site and off-site retention volumes;
- (i) Maintenance plan and schedule for each proposed BMP;
- (j) Monitoring plan for each BMP that captures stormwater for use;
- (k) For each proposed BMP not included in the Department's Stormwater Management Guidebook (SWMG):
 - (1) Separate identification and description; and
 - (2) Documentation of performance and effectiveness;
- (l) Construction sequence for:
 - (1) Each BMP; and
 - (2) The related development or improvement project, if any.
- (m) A list of the construction and waste material to be stored on site and a description of the material and each pollution control measure that will be implemented to minimize exposure to stormwater discharge, including:
 - (1) Each storage practice;
 - (2) A spill prevention response;
 - (3) The United States Environmental Protection Agency (EPA) identification number, or copy of application to EPA for identification number, for each hazardous waste that will be stored on site; and

(4) Proof of payment of each applicable fee.

519.3 The retention capacity of each BMP in a SWMP shall be calculated using the applicable equations for calculating retention value in Chapter three (3) of the Department's Stormwater Management Guidebook.

519.4 The pollutant removal efficiency of each BMP in a SWMP shall be calculated using the applicable equation in Chapter three (3) of the Department's SWMG.

519.5 The Department may require for each area that a project proposes for use to meet the requirements of this chapter, including a contiguous area or an area with a shared BMP:

- (a) Information listed in this section; or
- (b) A SWMP.

519.6 A submitted SWMP shall use:

- (a) A standard drawing size of twenty-four inches by thirty-six inches (24 in. x 36 in);
- (b) One (1) of the following horizontal scales of profile, unless otherwise approved:
 - (1) One inch equals ten feet (1 in. = 10 ft.);
 - (2) One inch equals twenty feet (1 in. = 20 ft.);
 - (3) One inch equals thirty feet (1 in. = 30 ft.);
 - (4) One inch equals forty feet (1 in. = 40 ft.);
 - (5) One inch equals fifty feet (1 in. = 50 ft.); or
 - (6) One inch equals eighty feet (1 in. = 80 ft.);
- (c) One (1) of the following vertical scales of profile, unless otherwise approved:
 - (1) One inch equals two feet (1 in. = 2 ft.);
 - (2) One inch equals four feet (1 in. = 4 ft.);
 - (3) One inch equals five feet (1 in. = 5 ft.); or

(4) One inch equals ten feet (1 in = 10 ft.); and

(d) Drafting media that yield first or second generation reproducible drawings with a minimum letter size of No. 4 (1/8 inch).

519.7 A SWMP shall not be approved without the signature and seal of the Director or the Director's designee on the plan.

519.8 For each as-built SWMP that an applicant submits to the Department, an applicant shall provide that a professional engineer licensed in the District of Columbia, certifies with seal and signature that:

(a) The design, and installation for an as-built plan:

(1) Conforms to engineering principles applicable to stormwater management; and

(2) Complies with the requirements of this chapter; and

(b) A set of instructions for operation and maintenance of each BMP has been provided to the applicant.

519.8 A SWMP for a project shall be consistent with all other permitting submittals to the District.

519.9 The approved SWMP for a major regulated project shall be available on site for Department review for the entire period of construction during ordinary business hours.

520 STORMWATER MANAGEMENT: PERFORMANCE REQUIREMENTS FOR MAJOR LAND-DISTURBING ACTIVITY

520.1 A site that undergoes a major land-disturbing activity shall employ each Best Management Practice (BMP) and land cover necessary to meet the requirements of this section until site redevelopment that follows a Department-approved Stormwater Management Plan (SWMP) occurs.

520.2 For a site that undergoes a major land-disturbing activity, except the area of a site that is in the existing Public Right-of-Way (PROW), the property owner shall maintain the following:

- (a) Post-development peak discharge rate for a twenty-four (24) hour, two (2) year frequency storm event at a level that is equal to or less than the storm event's pre-development peak discharge rate unless:
 - (1) The Department provides a waiver, which shall be granted if:
 - (A) The site retains less than fifty percent (50%) of the Stormwater Retention Volume (SWRV) requirement on-site in the Gray Combined Sewer System (Gray CSS) area from a drainage area that is not targeted for sewer separation as documented in capital improvement budgets; and
 - (B) The property owner signs an agreement committing the project to use only High-Impact Stormwater Retention Credits (SRCs) to comply with its Off-Site Retention Volume (Offv) requirement pursuant to § 527; or
 - (2) The site's discharge:
 - (A) Flows directly or through the separate sewer system to the main stem of the tidal Potomac or Anacostia Rivers, the Washington Channel, or the Chesapeake and Ohio Canal;
 - (B) Does not flow into or through a tributary to those waterbodies that run above ground or for which the Department has created or received plans or documentation stating the waterbody will be daylighted to run above ground; and
 - (C) Will not cause erosion of land or transport of sediment;
- (b) Post-development peak discharge rate for a twenty-four (24) hour, fifteen (15) year frequency storm event at a level that is equal to or less than the storm event's pre-project peak discharge rate; and
- (c) Post-development peak discharge rate from a twenty-four (24) hour, one hundred (100) year storm event at a level that is equal to or less than the storm event's pre-project peak discharge rate if the site:
 - (1) Increases the size of Special Flood Hazard Area as delineated on the effective Federal Emergency Management Agency (FEMA) Flood Insurance Rate Map; or
 - (2) Meets the following two conditions:

- (A) Does not discharge to the sewer system; and
- (B) Has a post-development peak discharge rate for a one hundred (100) year storm event that will cause flooding to a building.

520.3 For a site that undergoes a major land-disturbing activity, the property owner shall retain the rainfall from a one and two-tenths (1.2) inch rainfall event, which is the ninetieth (90th) percentile rainfall event for the District of Columbia, measured for a twenty-four (24) hour rainfall event with a seventy-two (72) hour antecedent dry period by:

- (a) Employing each BMP necessary to retain the one and two-tenths (1.2) inch SWRV requirement, calculated as follows:

$$SWRV = P \times [(RV_N \times N) + (RV_C \times C) + (RV_I \times I) + (RV_B \times B)] \times 7.48 / 12$$

where:

- SWRV = volume, in gallons, required to be retained,
- P = 90th percentile rainfall event for the District (1.2 inches),
- RV_N = .00 (runoff coefficient for natural cover),
- RV_C = .25 (runoff coefficient for compacted cover),
- RV_I = .95 (runoff coefficient for impervious cover),
- RV_B = .95 (runoff coefficient for BMP cover),
- N = post-development natural cover surface area,
- C = post-development compacted cover surface area,
- I = post-development impervious cover surface area,
- B = post-development BMP cover surface area;

- (b) Employing each post-development land cover factored into the SWRV; and
- (c) Calculating separately and complying with the SWRV requirement, with P equal to one and two-tenths (1.2) inches, for the portion of land-disturbing activity that is in the existing PROW, pursuant to § 521.

520.4 For a site that undergoes a major land-disturbing activity, the property owner may comply with the one and two-tenths (1.2) inch SWRv requirement on-site, off-site when not otherwise prohibited by this chapter, or through a combination of on-site retention and off-site retention, under the following conditions:

- (a) The site shall retain on-site a minimum of fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement, calculated for the entire site, unless the Department:
 - (1) Approves an application for relief from extraordinarily difficult site conditions; or
 - (2) Provides a waiver, which shall be granted if:
 - (A) The site drains into the Gray CSS from a drainage area that is not targeted for sewer separation as documented in capital improvement budgets; and
 - (B) The property owner signs an agreement committing the project to use only High-Impact SRCs or Low-Impact Voluntary SRCs to comply with its Offv requirement pursuant to § 527; and
- (b) Pursuant to § 527, the property owner shall use off-site retention for any portion of the SWRv requirement that is not retained on-site.

520.5 For a site that undergoes a major land-disturbing activity, the property owner may comply with on-site retention requirements by retaining more than the one and two-tenths (1.2) inch SWRv requirement for an area of the site, subject to the following conditions:

- (a) Unless a Site Drainage Area (SDA) drains into the Combined Sewer System (CSS) or the Department approves an application for relief from extraordinarily difficult site conditions, the property owner shall comply with at least fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement from the SDA through:
 - (1) Retained; or
 - (2) Treated to remove eighty percent (80%) of total suspended solids;
- (b) Unless an SDA drains into the CSS or the Department approves an application for relief from extraordinarily difficult site conditions, the entirety of an area intended for use or storage of motor vehicles shall drain

to each necessary BMP to comply with at least fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement flowing from that entire area through retention or treatment;

- (c) Retention in excess of a one and two-tenths (1.2) inch SWRv requirement for one area of the site may be applied to the volume required for another area of the site;
- (d) Unless the Department approves an application for relief from extraordinarily difficult site conditions or waives the minimum on-site retention requirement pursuant to § 520.4(a)(2), the property owner shall comply with a minimum of fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement for the entire site; and
- (e) Retention of volume greater than that from a one and seven-tenths (1.7) inch rainfall event, calculated using the SWRv equation as stated in § 520.3(a) with a P equal to one and seven-tenths (1.7) inches, shall not be counted toward on-site retention.

520.6 A major land-disturbing activity may achieve on-site retention by directly conveying volume from the regulated site to a shared BMP with available retention capacity.

521 STORMWATER MANAGEMENT: PERFORMANCE REQUIREMENTS FOR MAJOR LAND-DISTURBING ACTIVITY CONSISTING OF BRIDGE, ROADWAY, AND STREETScape PROJECTS IN THE EXISTING PUBLIC RIGHT-OF-WAY

521.1 This section applies only to the portion of a major regulated project that consists entirely of bridge, roadway, streetscape, or railway work:

- (a) In the existing Public Right-of-Way (PROW); or
- (b) In the existing PROW and in the public space associated with the PROW.

521.2 For a project in the existing PROW, the property owner may comply with a requirement in this chapter to retain a Stormwater Retention Volume (SWRv) by:

- (a) Retaining fifty percent (50%) of the SWRv requirement on-site and using off-site retention for the remaining volume pursuant to § 527, as applicable;
- (b) Retaining one hundred percent (100%) the SWRv requirement on-site; or

- (c) Retaining the SWRv requirement on-site to the maximum extent practicable (MEP), after proving that each opportunity to install retention capacity has been exhausted, as described in the Department's Stormwater Management Guidebook (SWMG).

521.3 A project in the existing PROW shall:

- (a) Prioritize, to the MEP, the management of stormwater from the roadway, including stormwater draining from roadway beyond the area of land-disturbing activity; and
- (b) Not be required to install a Best Management Practice (BMP) or land cover:
 - (1) That provides retention capacity greater than that required to achieve the SWRv that is calculated for the area of land-disturbing activity; or
 - (2) That is outside the area of land-disturbing activity.

521.4 An existing PROW project on an Anacostia Waterfront Development Zone (AWDZ) site may comply with a requirement in this chapter to achieve a Water Quality Treatment Volume (WQTV) by:

- (a) Achieving the WQTV; or
- (b) Achieving the WQTV to the MEP, after proving that each opportunity for installing retention and treatment capacity has been exhausted in compliance with the MEP process for existing PROW detailed in the SWMG.

521.5 To elect to retain the SWRv requirement on-site to the MEP for a project in the existing PROW, a person shall provide the following information demonstrating technical infeasibility or environmental harm:

- (a) Detailed explanation of each opportunity for on-site installation of a BMP that was considered and rejected, and the reasons for each rejection, including each opportunity that could be created by reducing roadway width to create an expanded area for retention of the SWRv requirement or treatment of the WQTV requirement between the curb line and private property; and
- (b) Evidence of site conditions limiting each opportunity for a BMP, including, as applicable:

- (1) Data on soil and groundwater contamination;
- (2) Data from percolation testing;
- (3) Documentation of the presence of utilities requiring impermeable protection or a setback;
- (4) Documentation of structural requirements that would not be satisfied by a BMP;
- (5) Evidence of the applicability of a statute, regulation, court order, pre-existing covenant, or other restriction having the force of law; and
- (6) Evidence of a District-approved use for the safe and effective transport of goods or people.

521.6 For a major regulated project in the existing PROW, the property owner may comply with on-site retention requirements by retaining more than the one and two-tenths (1.2) inch SWRv requirement for an area of the site or for an area that drains to the site, subject to the following conditions:

- (a) Unless a Site Drainage Area (SDA) drains into the Combined Sewer System (CSS) or the Department approves an application for relief from extraordinarily difficult site conditions, the property owner shall comply with at least fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement from the SDA through:
 - (1) Retention; or
 - (2) Treatment to remove eighty percent (80%) of total suspended solids to the MEP;
- (b) Unless an SDA drains into the CSS or the Department approves an application for relief from extraordinarily difficult site conditions, the entirety of an area intended for use or storage of motor vehicles shall drain to each necessary BMP to comply with at least fifty percent (50%) of the one and two-tenths (1.2) inch SWRv requirement flowing from that entire area through retention or treatment to the MEP;
- (c) Retention in excess of a one and two-tenths (1.2) inch SWRv requirement for one (1) area of the site or an area that drains to the site may be applied to the volume required for another area of the site;

- (d) On-site BMPs shall retain a minimum of fifty percent (50%) of the one and two-tenths (1.2) inch SWR_v requirement for the entire site unless the project complies with the SWR_v requirement to the MEP;
- (e) For any site that retains less than fifty percent (50%) of the SWR_v requirement on-site, the property owner shall use off-site retention pursuant to § 527, as applicable, unless the project complies with the SWR_v requirement to the MEP; and
- (f) Retention of volume greater than that from a one and seven-tenths (1.7) inch rainfall event, calculated using the SWR_v equation with a P equal to one and seven-tenths (1.7) inches, shall not be counted toward on-site retention.

521.7 If a project in the existing PROW that is retaining the SWR_v to the MEP is not able to achieve retention of fifty percent (50%) of the SWR_v for the entirety of an area intended for use or storage of motor vehicles, the Department may waive a requirement to provide treatment for that volume if the Department:

- (a) Determines that a treatment BMP would displace or reduce the size of retention capacity to be installed; and
- (b) Concludes that the displaced or reduced retention capacity would be as protective or more protective for District waterbodies than the alternative treatment BMP.

521.8 An existing PROW project that is retaining the SWR_v or the WQT_v to the MEP shall not be required to use off-site retention for the difference between the required volume and the achieved volume.

522 STORMWATER MANAGEMENT: PERFORMANCE REQUIREMENTS FOR MAJOR SUBSTANTIAL IMPROVEMENT ACTIVITY

522.1 If land disturbance associated with a major substantial improvement activity constitutes a major land-disturbing activity or is part of a common plan of development with a major land-disturbing activity, then the property owner shall comply with the performance requirements for a major land-disturbing activity pursuant to § 520; otherwise, the property owner shall comply with the provisions of this section.

522.2 For the purposes of calculating the cost of a major substantial improvement to a building or structure, an applicant may exclude the cost of replacing manufacturing and industrial equipment, including pumps, valve chambers, and wastewater treatment facilities, but may not exclude the cost of replacing boilers,

furnaces, and other equipment that is part of the heating and cooling system or other infrastructure commonly found in a building or structure.

522.3 For a site that undergoes a major substantial improvement activity, the property owner shall employ and maintain each Best Management Practice (BMP) and land cover necessary to comply with the requirements of this section until site redevelopment that follows a Department-approved Stormwater Management Plan (SWMP) occurs.

522.4 For a site that undergoes a major substantial improvement activity, the property owner shall retain the rainfall from an eight-tenths (.8) of an inch rainfall event, which is the eightieth (80th) percentile rainfall event for the District of Columbia, measured for a twenty-four (24) hour storm with a seventy-two (72) hour antecedent dry period by:

- (a) Employing each BMP necessary to retain the eight-tenths (.8) of an inch Stormwater Retention Volume (SWRV) requirement, calculated as follows:

$$SWRV = P \times [(RV_N \times N) + (RV_C \times C) + (RV_I \times I) + (RV_B \times B)] \times 7.48 / 12$$

where:

The surface area shall include the combined total of the substantially improved building footprint and the land disturbance,

SWRV = volume, in gallons, required to be retained,

P = 80th percentile rainfall event for the District (.8 inches),

RV_N = .00 (runoff coefficient for natural cover),

RV_C = .25 (runoff coefficient for compacted cover),

RV_I = .95 (runoff coefficient for impervious cover),

RV_B = .95 (runoff coefficient for BMP cover),

N = post-development natural cover surface area,

C = post-development compacted cover surface area,

I = post-development impervious cover surface area,

B = post-development BMP cover surface area;

- (b) Employing each post-development land cover factored into the SWRv requirement; and
- (c) Calculating separately and complying with the SWRv requirement, with P equal to one and two-tenths (1.2) inches for the portion of land-disturbing activity that is in the existing Public Right-of-Way (PROW) in compliance with § 521.

522.5 For a site that undergoes a major substantial improvement activity, the property owner may comply with the eight-tenths (.8) of an inch SWRv requirement on-site or through a combination of on-site retention and off-site retention, under the following conditions:

- (a) The site shall retain a minimum of fifty percent (50%) of the eight-tenths (.8) of an inch SWRv requirement on-site, calculated for the entire site, unless the Department:
 - (1) Approves an application for relief from extraordinarily difficult site conditions; or
 - (2) Provides a waiver, which shall be granted if:
 - (A) The site drains into the Gray Combined Sewer System (Gray CSS) from a drainage area that is not targeted for sewer separation, as documented in capital improvement budgets; and
 - (B) The property owner signs an agreement committing the project to use only High-Impact Stormwater Retention Credits (High-Impact SRCs) or Low-Impact Voluntary SRCs to comply with its Off-Site Retention Volume (Offv) requirement pursuant to § 527; and
- (b) Pursuant to § 527, the property owner shall use off-site retention for the portion of the SWRv requirement that is not retained on-site.

522.6 For a site that undergoes a major substantial improvement activity, the property owner may comply with on-site retention requirements by retaining more than the eight-tenths (.8) of an inch SWRv requirement for an area of the site, subject to the following conditions:

- (a) Unless a Site Drainage Area (SDA) drains into the Combined Sewer System (CSS) or the Department approves an application for relief from extraordinarily difficult site conditions, the property owner shall comply

with at least fifty percent (50%) of the eight-tenths of an inch (.8 inch) SWRv requirement from the SDA through:

- (1) Retention; or
 - (2) Treatment to remove eighty percent (80%) of total suspended solids;
- (b) Unless an SDA drains into the CSS or the Department approves an application for relief from extraordinarily difficult site conditions, the entirety of an area intended for use or storage of motor vehicles shall drain to each necessary BMP to comply with at least fifty percent (50%) of the eight-tenths (.8) of an inch SWRv requirement flowing from that entire area through retention or treatment;
 - (c) Retention in excess of an eight-tenths (.8) of an inch SWRv requirement for one (1) area of the site may be applied to the volume required for another area of the site;
 - (d) Unless the Department approves an application for relief from extraordinarily difficult site conditions or waives the minimum on-site retention requirement pursuant to § 522.5(a)(2), the property owner shall comply with a minimum of fifty percent (50%) of the eight-tenths (.8) of an inch SWRv requirement for the entire site; and
 - (e) Retention of volume greater than that from a one and seven-tenths (1.7) inch rainfall event, calculated using the SWRv equation with a P equal to one and seven-tenths (1.7) inches, shall not be counted toward on-site retention.

522.7 A major substantial improvement activity may achieve on-site retention by directly conveying volume from the regulated site to a shared BMP with available retention capacity.

523 STORMWATER MANAGEMENT: RESTRICTIONS

523.1 The Department may restrict use of an infiltration Best Management Practice (BMP) to prevent contamination of soil or groundwater and require submittal of and compliance with a Stormwater Pollution Prevention Plan if:

- (a) An applicant proposes to engage in a land use activity that has the potential to pollute stormwater runoff, as specified in the Department's Stormwater Management Guidebook (SWMG); or
- (b) Surface contamination is present at the site.

- 523.2 To prevent stormwater migration in underlying soil or groundwater in an area determined to have sub-surface contamination of soil or groundwater, the Department may:
- (a) Prohibit use of an infiltration BMP; or
 - (b) Limit use of an infiltration BMP, including by requiring that an impermeable liner be used.
- 523.3 The Department may require a BMP that receives runoff from a stormwater hotspot designated in the Department's SWMG to include pollution control measures, including, as applicable, a baffle, skimmer, oil separator, grease trap, or other mechanism which prevents release of oil and grease in concentrations exceeding ten milligrams per Liter (10 mg/L).
- 523.4 The Department may require a BMP that receives runoff from an animal confinement area to:
- (a) Connect to a combined sewer, if DC Water approves the connection as not exceeding available capacity; or
 - (b) Include pollution control measures necessary to protect water quality standards of the receiving waterbody, if the runoff discharges directly to a waterbody or through the separate sewer system.
- 523.5 No person shall use a coal tar product, or other toxic material, to seal a BMP.
- 524 STORMWATER MANAGEMENT: PERFORMANCE REQUIREMENTS FOR MAJOR REGULATED PROJECTS IN THE ANACOSTIA WATERFRONT DEVELOPMENT ZONE**
- 524.1 An Anacostia Waterfront Development Zone site (AWDZ site) is a site within the Anacostia Waterfront Development Zone (AWDZ) that undergoes a major regulated project that is publicly owned or publicly financed.
- 524.2 For an AWDZ site, the property owner shall employ and maintain each Best Management Practice (BMP) and land cover necessary to comply with the requirements of this section until site redevelopment that follows a Department-approved Stormwater Management Plan (SWMP) occurs.
- 524.3 Except for activities exempted under this chapter, if a provision of this section conflicts with any other provision of this chapter, an AWDZ site shall be subject to the more stringent provision.

524.4 For an AWDZ site that undergoes a major land-disturbing activity, the property owner shall treat the rainfall from a one and seven-tenths (1.7) inch rainfall event, which is the ninety-fifth (95th) percentile rainfall event for the District of Columbia, measured for a twenty-four (24) hour rainfall event with a seventy-two (72) hour antecedent dry period by:

- (a) Employing each BMP necessary to treat the one and seven-tenths (1.7) inch Water Quality Treatment Volume (WQTV) equal to the difference between:
 - (1) The post-development runoff from the one and seven-tenths (1.7) inch rainfall event; and
 - (2) The one and two-tenths (1.2) inch Stormwater Retention Volume (SWRV);
- (b) Calculating the WQTV requirement in § 524.4(a) as follows:

$$\text{WQTV} = (P \times [(R_{VN} \times N) + (R_{VC} \times C) + (R_{VI} \times I) + (R_{VB} \times B)] \times 7.48 / 12) - \text{SWRV}$$

where:

The surface area shall include the combined total of the substantially improved building footprint and the land disturbance,

WQTV = volume, in gallons, required to be retained or treated, above and beyond the SWRV requirement,

SWRV = volume, in gallons, required to be retained,

P = 95th percentile rainfall event for the District (1.7 inches),

R_{VN} = .00 (runoff coefficient for natural cover),

R_{VC} = .25 (runoff coefficient for compacted cover),

R_{VI} = .95 (runoff coefficient for impervious cover),

R_{VB} = .95 (runoff coefficient for BMP cover),

N = post-development natural cover surface area;

C = post-development compacted cover surface area,

I = post-development impervious cover surface area,

B = post-development BMP cover surface area; and

(c) Employing each post-development land cover factored into the WQTV.

524.5 For an AWDZ site that undergoes a major substantial improvement activity and does not undergo a major land-disturbing activity, the property owner shall:

(a) Comply with the performance requirements for major substantial improvement activity, except that the SWRV requirement shall be equal to the post-development runoff from a one (1.0) inch rainfall event, which is the eighty-fifth (85th) percentile rainfall event for the District of Columbia, measured for a twenty-four (24) hour rainfall event with a seventy-two (72) hour antecedent dry period;

(b) Treat rainfall from a one and seven-tenths (1.7) inch rainfall event, which is the ninety-fifth (95th) percentile rainfall event for the District of Columbia, measured for a twenty-four (24) hour rainfall event with a seventy-two (72) hour antecedent dry period by:

(1) Employing and maintaining each BMP necessary to treat the one and seven-tenths (1.7) inch WQTV requirement equal to the difference between:

(A) The post-development runoff from the one and seven-tenths (1.7) inch rainfall event; and

(B) The one (1.0) inch SWRV;

(2) Calculating the WQTV requirement in § 524.5(b) as follows:

$$WQTV = (P \times [(RV_N \times N) + (RV_C \times C) + (RV_I \times I) + (RV_B \times B)] \times 7.48 / 12) - SWRV$$

where:

The surface area shall include the combined total of the substantially improved building footprint and the land disturbance,

WQTV = volume, in gallons, required to be retained or treated, above and beyond the SWRV requirement,

SWRV = volume, in gallons, required to be retained,

- P = 95th percentile rainfall event for the District (1.7 inches),
- R_{VN} = .00 (runoff coefficient for natural cover),
- R_{VC} = .25 (runoff coefficient for compacted cover),
- R_{VI} = .95 (runoff coefficient for impervious cover),
- R_{VB} = .95 (runoff coefficient for BMP cover),
- N = post-development natural cover surface area,
- C = post-development compacted cover surface area,
- I = post-development impervious cover surface area,
- B = post-development BMP cover surface area; and

- (3) Employing each post-development land cover factored into the WQ_{Tv}.

524.6 For an AWDZ site, the property owner may comply with part of the WQ_{Tv} or SWR_v requirements by using off-site retention pursuant to § 527 if:

- (a) On-site treatment designed to remove eighty percent (80%) of total suspended solids;
- (b) On-site retention; or
- (c) Direct conveyance of stormwater from the site to an approved shared BMP with sufficient available treatment or retention capacity.

524.7 For an AWDZ site, the property owner may comply with part of the WQ_{Tv} or SWR_v requirements by using off-site retention pursuant to § 527 if:

- (a) Site conditions make compliance technically infeasible, environmentally harmful, or of limited appropriateness in terms of impact on surrounding landowners or overall benefit to District waterbodies; and
- (b) The Department approves an application for relief from extraordinarily difficult site conditions.

- 524.8 For an AWDZ site, person shall use one and one-quarter (1.25) SRCs to comply with one (1) gallon of an Offv requirement if the SRCs are certified for retention capacity located outside of the Anacostia watershed.
- 524.9 An AWDZ site shall obtain Department approval of an integrated pesticide management plan meeting the requirements of the Department's Stormwater Management Guidebook.
- 524.10 A major regulated project in the AWDZ shall achieve the required level of stormwater management using one or more of the following methods, in the following order of preference:
- (a) Vegetated BMPs and land covers designed to retain and beneficially use stormwater;
 - (b) Where compatible with groundwater protection, non-vegetated infiltration BMPs;
 - (c) Other low impact development practices;
 - (d) Collection and use of stormwater for on-site irrigation and other purposes; and
 - (e) Other on-site BMPs or design methods approved by the Department.

525 STORMWATER MANAGEMENT: SHARED BEST MANAGEMENT PRACTICE

- 525.1 A Shared Best Management Practice (S-BMP) may, upon approval by the Department:
- (a) Provide stormwater management for a major regulated project in satisfaction of an on-site stormwater management requirement of that project; and
 - (b) Be eligible for Department certification of a Stormwater Retention Credit (SRC).
- 525.2 A Department-approved S-BMP may provide stormwater management for a nearby property if:
- (a) Stormwater flow from the nearby property is directly conveyed to the S-BMP; and
 - (b) The S-BMP has sufficient capacity.

- 525.3 To obtain Department approval of the use of an existing S-BMP, a major regulated project shall show how each requirement of the project will be met by the S-BMP, including:
- (a) Submit an as-built Stormwater Management Plan (SWMP) for the S-BMP that is accurate as of the time of submittal;
 - (b) Prove sufficient capacity of the S-BMP;
 - (c) Demonstrate the adequacy of each stormwater conveyance from the major regulated project to the S-BMP; and
 - (d) Show each drainage area conveying stormwater into the S-BMP from the major regulated project.
- 525.4 To obtain Department approval of the use of a proposed S-BMP, a major regulated project shall show how each requirement of the project will be met by the S-BMP, including:
- (a) Submit a Department-approved SWMP for the S-BMP;
 - (b) Prove sufficient capacity of the S-BMP;
 - (c) Demonstrate the adequacy of each stormwater conveyance from the major regulated project to the S-BMP; and
 - (d) Show each drainage area conveying stormwater into the S-BMP from the major regulated project.
- 525.5 A major regulated project that uses a S-BMP to meet a requirement shall not pass the Department's final inspection until the S-BMP passes the Department's final inspection and is operational.
- 525.6 After an alteration to a S-BMP to provide stormwater management for another site, the site with the S-BMP shall:
- (a) Pass the Department's inspection; and
 - (b) Submit an as-built SWMP, showing each area draining into the S-BMP and the means of conveyance.
- 525.7 The Department may certify a SRC for a S-BMP if the S-BMP meets each requirement for certification.

525.8 A site with a S-BMP that provides a volume of stormwater management to satisfy an on-site requirement of a major regulated project shall be responsible for maintenance of the S-BMP capacity to manage that volume and shall record that responsibility in a declaration of covenants.

525.9 If the Department determines that a S-BMP has ceased satisfying an on-site retention requirement for a site that underwent a major regulated project, the site shall be responsible for retaining the required volume on site or via use of off-site retention.

526 STORMWATER MANAGEMENT: RELIEF FROM EXTRAORDINARILY DIFFICULT SITE CONDITIONS

526.1 The applicant may apply for relief from extraordinarily difficult site conditions if it is technically infeasible or environmentally harmful:

- (a) For a site to comply with the minimum on-site retention requirement (fifty percent (50%) of Stormwater Retention Volume (SWRv));
- (b) For an Anacostia Waterfront Development Zone (AWDZ) site to comply with any portion of its WQTV or SWRv on-site, except that AWDZ sites may also apply based on the limited appropriateness of on-site stormwater management; or
- (c) For a site to comply with the minimum on-site retention or treatment requirements for SDAs (fifty percent (50%) retention or treatment of the SWRv from each SDA and fifty percent (50%) retention or treatment of the SWRv from the entire vehicular access area).

526.2 The Department shall not provide relief unless the applicant proves that on-site compliance is technically infeasible or environmentally harmful, except that, for an AWDZ site, the Department may also consider the appropriateness of on-site compliance in terms of impact on surrounding landowners or overall benefit to District waterbodies.

526.3 In order to support its case for relief, the applicant shall provide the following information demonstrating technical infeasibility or environmental harm:

- (a) Detailed explanation of each opportunity for on-site installation of a Best Management Practice (BMP) that was considered and rejected, and the reasons for each rejection;
- (b) Evidence of site conditions limiting each opportunity for a BMP, including, as applicable:

- (1) Data on soil and groundwater contamination;
- (2) Data from percolation testing;
- (3) Documentation of the presence of utilities requiring impermeable protection or a setback;
- (4) Evidence of the applicability of a statute, regulation, court order, pre-existing covenant, or other restriction having the force of law;
- (5) Evidence that the installation of a retention BMP would conflict with the terms of a non-expired approval, applied for prior to the end of Transition Period Two A for a major land-disturbing activity or before the end of Transition Period Two B for a major substantial improvement activity, of a:
 - (A) Concept review by the Historic Preservation Review Board;
 - (B) Concept review by the Commission on Fine Arts;
 - (C) Preliminary or final design submission by the National Capital Planning Commission;
 - (D) Variance or special exception from the Board of Zoning Adjustment; or
 - (E) Large Tract Review by the District Office of Planning;
- (6) For a utility, evidence that a property owner on or under whose land the utility is conducting work objects to the installation of a BMP;
- (7) For a major substantial improvement activity, evidence that the structure cannot accommodate a BMP without significant alteration, because of a lack of available interior or exterior space or limited load-bearing capacity; and
- (8) For single- and two-family affordable housing, evidence of:
 - (A) The usability of space to achieve the proposed project purpose;
 - (B) Lack of the minimum CDA required for a BMP to be effective;

- (C) The difficulty of conducting BMP maintenance;
- (c) For single- and two-family affordable housing:
 - (1) Evidence of the sensitivity of receiving waterbody to stormwater runoff; and
 - (2) Evidence of the likelihood of runoff from the site to cause to erosion of land, transport of sediment, nuisance flooding.
- 526.4 An applicant for relief shall submit to the Department's submittal database:
 - (a) A complete application; and
 - (b) Proof of payment of the applicable fee.
- 526.5 The Department shall not consider an incomplete application for relief; except that if an application is substantially complete, the Department may begin consideration.
- 526.6 In determining whether to grant relief, the Department may consider:
 - (a) The applicant's submittal;
 - (b) Other site-related information;
 - (c) An alternative design;
 - (d) The Department's Stormwater Management Guidebook;
 - (e) Another BMP that complies with the requirements of this chapter; and
 - (f) Relevant scientific and technical literature, reports, guidance, and standards.
- 526.7 After considering whether an application meets the requirements of this section, the Department may:
 - (a) Require additional information;
 - (b) Grant relief;
 - (c) Grant relief, with conditions;

- (d) Deny relief; or
- (e) Deny relief in part.

526.8 No relief shall be granted unless, for the volume of relief granted, the Stormwater Management Plan (SWMP) for the project provides for:

- (a) Use of off-site retention, with the Off-Site Retention Volume documented on the approved SWMP; and
- (b) If the relief is from a minimum on-site retention requirement, treatment to remove eighty percent (80%) of total suspended solids.

**527 STORMWATER MANAGEMENT: USE OF OFF-SITE
RETENTION THROUGH THE IN-LIEU FEE OR
STORMWATER RETENTION CREDITS**

527.1 For a site that undergoes a major regulated project and has an Off-Site Retention Volume (Offv) requirement, a person shall use off-site retention to comply with each gallon of the Offv requirement each year until the Department terminates or suspends the Offv requirement pursuant to §§ 527.20–527.24.

527.2 The Department shall track the use of off-site retention to achieve an Offv.

527.3 A person shall comply with an Offv requirement no later than the Offv compliance date, which begins and recurs annually on the earlier of the following dates:

- (a) Successful completion of the Department’s final construction inspection;
or
- (b) The date construction activities were substantially completed, as determined by the Department when:
 - (1) The Department did not require a final construction inspection;
 - (2) The major regulated project failed a final construction inspection;
or
 - (3) The person failed to schedule a final construction inspection at the required time.

527.4 No person shall allow a portion of their Offv obligation to be unfulfilled for any period of time.

- 527.5 To comply with one (1) gallon of an Offv requirement for one (1) year, a person shall use one (1) High-Impact Stormwater Retention Credit (High-Impact SRC) unless they:
- (a) Are allowed to substitute a:
 - (1) Purchased Low-Impact Stormwater Retention Credit (Low-Impact SRC) pursuant to §§ 527.9 and 527.10; or
 - (2) Self-generated Low-Impact SRC pursuant to § 527.12;
 - (b) Are required to use one and one-quarter (1.25) Stormwater Retention Credits (SRCs) for an Anacostia Waterfront Development Zone site (AWDZ site) pursuant to § 527.7; or
 - (c) Pay the in-lieu fee for the gallon of Offv, unless prohibited by § 527.8.
- 527.6 No person shall use SRCs to comply with an Offv requirement without obtaining the Department's approval.
- 527.7 For an AWDZ site, a person shall use one and one-quarter (1.25) SRCs to comply with one (1) gallon of an Offv requirement if the SRCs are certified for retention capacity located outside of the Anacostia watershed.
- 527.8 To comply with an Offv requirement, a person shall use only High-Impact SRCs if the project with Offv received Department approval for:
- (a) Permanent Offv compliance pursuant to §§ 527.20–527.24; or
 - (b) A waiver:
 - (1) For two (2) year storm detention requirements pursuant to § 520.2(a); or
 - (2) To retain less than fifty percent (50%) of the Stormwater Retention Volume (SWRv) on-site in the Gray Combined Sewer System (Gray CSS) area pursuant to §§ 520.4(a)(2) or 522.5(a)(2), unless the substitution is a Low-Impact Voluntary SRC.
- 527.9 A person who purchases SRCs to comply with an Offv requirement and who is not otherwise prohibited by § 527.8 may substitute High-Impact SRCs with:
- (a) Low-Impact Municipal Separate Storm Sewer System (MS4) SRCs when:
 - (1) High-Impact SRCs are not available pursuant to § 527.10; or

- (2) The site with Offv is an AWDZ site and High-Impact SRCs certified for retention capacity located in the Anacostia watershed are not available pursuant to § 527.10;
 - (b) Low-Impact Green Combined Sewer System (Green CSS) SRCs when:
 - (1) High-Impact SRCs and Low-Impact MS4 SRCs are not available pursuant to § 527.10; and
 - (2) The site with the Offv requirement:
 - (A) Drains to the Green CSS area or the Gray CSS area;
 - (B) Is not an AWDZ site; and
 - (C) Is located outside the limits of the existing Public Right-of-Way (PROW); or
 - (c) Low-Impact Gray CSS SRCs when:
 - (1) High-Impact SRCs and Low-Impact MS4 SRCs are not available pursuant to § 527.10; and
 - (2) The site with the Offv requirement:
 - (A) Drains to the Gray CSS area;
 - (B) Is not an AWDZ site; and
 - (C) Is located outside the limits of the existing PROW.
- 527.10 A type of SRC required in § 527.9 is not available for purchase if on the Offv compliance date there are not enough SRCs of that type for sale to comply with the site's Offv requirement for one (1) year.
- 527.11 When purchasing SRCs pursuant to §§ 527.9 and 527.10, a person may use Low-Impact SRCs to comply with the Offv requirement for only the next single year.
- 527.12 A person who uses self-generated SRCs to comply with an Offv requirement and who is not otherwise prohibited by § 527.8 shall use SRCs as follows:
- (a) For an AWDZ site; a site that drains to the MS4 area; or any PROW site that drains to the CSS and achieves less than fifty percent (50%) of the SWRv requirement on-site, a person shall use any of the following:

- (1) Self-generated High-Impact SRCs; or
 - (2) Self-generated Low-Impact MS4 SRCs;
- (b) For a site that drains to the Green CSS area, a person shall use any of the following:
 - (1) Self-generated High-Impact SRCs;
 - (2) Self-generated Low-Impact MS4 SRCs; or
 - (3) Self-generated Low-Impact Green CSS SRCs; and
- (c) For a site that drains to the Gray CSS area and achieves:
 - (1) Fifty percent (50%) or more of the SWRv requirement on-site, a person may use any self-generated SRCs; or
 - (2) Less than fifty percent (50%) of the SWRv requirement on-site, a person shall use any of the following:
 - (A) Self-generated High-Impact SRCs;
 - (B) Self-generated Low-Impact Voluntary SRCs; or
 - (C) If the Department approves an application for relief from extraordinarily difficult site conditions, then any self-generated SRCs.

527.13 Only the current owner of an SRC or their agent may apply to the Department for approval to use that SRC to comply with one (1) gallon of an Offv requirement.

527.14 To comply with an Offv requirement, the property owner or their agent shall provide the following to the Department before the Offv compliance date:

- (a) For use of SRCs, a completed application in the Department's submittal database that includes:
 - (1) The unique serial numbers of the SRCs; and
 - (2) Information about the site with Offv that will use the SRCs, including property location and stormwater management on the property; or

- (b) For use of an in-lieu fee payment:
 - (1) A completed form in the Department's submittal database to notify the Department of the intent to use an in-lieu fee payment; and
 - (2) Payment of the in-lieu fee.
- 527.15 The Department shall not approve an application to use an SRC to comply with an Offv requirement if the lifespan of the SRC has terminated pursuant to § 532.
- 527.16 The one (1) year lifespan of an SRC or an in-lieu fee payment begins on the date it is used to comply with one (1) gallon of an Offv requirement.
- 527.17 If the Department determines that a property owner failed to comply with an Offv requirement, the Department shall:
 - (a) Provide the property owner with written notice of noncompliance; and
 - (b) Require the property owner to:
 - (1) Pay the in-lieu fee for each gallon of Offv; and
 - (2) Pay an administrative late fee calculated as ten percent (10%) of the in-lieu fee amount pursuant to § 501.12.
- 527.18 A property owner who receives a notice of noncompliance for an Offv requirement shall:
 - (a) Comply; and
 - (b) Pay the assessed fees.
- 527.19 If a property owner fails to comply within thirty (30) days after the date the Department issued a notice of noncompliance with an Offv requirement, the Department shall administratively use the property owner's eligible unused SRCs to comply with the Offv requirement.
- 527.20 A requirement to comply with a gallon of Offv shall terminate when a property owner has complied with all prior years of the Offv requirement and the performance requirements of this chapter, and:
 - (a) Retained the gallon on-site in compliance with a Department-approved Stormwater Management Plan (SWMP) revision;

- (b) Redeveloped the site in compliance with a new Department-approved SWMP; or
- (c) If the major regulated project with the Offv requirement is located in the Gray CSS area, used High-Impact SRCs to comply with the Offv for thirty (30) consecutive compliance years pursuant to § 527.21.

527.21 Pursuant to § 527.20(c), the Department will terminate an Offv requirement for a project located in the Gray CSS area provided that:

- (a) The property owner shall comply with thirty (30) consecutive years of the Offv requirement solely by using High-Impact SRCs;
- (b) The property owner or their agent shall, using a form in the Department's submittal database, apply to the Department to request the permanent Offv compliance option within three (3) years of the later of:
 - (c)
 - (1) (The effective date of the final rulemaking); or
 - (2) The date construction was substantially completed, as determined by the Department;
- (d) If the property owner has already complied with one (1) or more years of the Offv requirement pursuant to § 527.21(a), the Department will count these years of compliance toward the thirty (30) year compliance period;
- (e) The application to request permanent Offv compliance shall include:
 - (1) The plan number for the Offv requirement;
 - (2) The start and end dates of the thirty (30) year compliance period;
 - (3) Enough High-Impact SRCs to comply with at least the next four (4) years of the Offv requirement; and
 - (4) Evidence that within four (4) years after the application date, the property owner will provide to the Department the remaining High-Impact SRCs to comply with a total of thirty (30) years of the Offv requirement. The evidence shall consist of either:
 - (A) An executed contract between the property owner and an SRC seller; or
 - (B) A promise signed by the property owner;

- (f) Within four (4) years after the date of the application, the property owner shall provide the Department the full amount of High-Impact SRCs required to comply with thirty (30) years of the Offv requirement;
- (g) The High-Impact SRCs a person uses pursuant to §§ 527.20 and 527.21:
 - (1) Shall not be applied or transferred in full or in part to the Offv requirement for a different plan; and
 - (2) Are not refundable in full or in part even if any portion of the site is redeveloped before the end of the thirty (30) year compliance period; and
- (h) The Department will provide the property owner written confirmation when the property owner has:
 - (1) Complied with thirty (30) years of the Offv requirement and the Offv requirement is terminated; or
 - (2) Not completed the application requirements and the application for permanent Offv compliance is revoked.

527.22 A property owner may request to terminate an Offv requirement pursuant to § 517.7 for installation or replacement of athletic playing fields, permeable athletic tracks, or permeable playground surfaces or suspend the Offv pursuant to § 518.14 for single-family or two-family houses constructed as affordable housing, if they:

- (a) Maintain each on-site Best Management Practice (BMP) pursuant to the approved SWMP for the project; and
- (b) Submit a request through the Department's submittal database and attach a letter explaining why the project qualifies for Offv termination or suspension.

527.23 If the Department approves a request to terminate or suspend an Offv requirement pursuant to §§ 517.7 or 518.14:

- (a) The applicant shall revise the declaration of covenants, if necessary, pursuant to § 529.4; and
- (b) The Department shall prorate and refund any excess amount of SRCs or in-lieu fee payment used to comply with the Offv requirement beyond the termination or suspension date.

- 527.24 The Department shall prorate and refund SRCs or an in-lieu fee payment that an owner used to comply with an Offv requirement if:
- (a) The Department determines that the Offv requirement terminated before the end of the compliance period; or
 - (b) The applicant had previously paid the in-lieu fee to the Department to comply with the Offv requirement and subsequently provided SRCs to the Department for the Offv.

528 STORMWATER MANAGEMENT: MAINTENANCE

- 528.1 Each owner or designee of each lot and parcel that is part of a site that undertook a major regulated project shall be responsible for maintenance required by the Stormwater Management Plan (SWMP) approved by the Department and shall record that responsibility in a declaration of covenants.
- 528.2 The Department may assign maintenance responsibility for a Shared Best Management Practice (S-BMP) in an approved SWMP after considering:
- (a) How maintenance will be achieved;
 - (b) Each lot and parcel's responsibility relative to its reliance on each S-BMP and land cover to comply with this chapter;
 - (c) Administrative feasibility; and
 - (d) Accountability and enforceability.
- 528.3 The owner, governmental agency, or other person with maintenance responsibility shall ensure that a Best Management Practice (BMP) and a land cover on a lot or parcel is maintained in good working order if:
- (a) The BMP or land cover was installed to meet the requirements of this chapter for a major regulated project; or
 - (b) The Department certified a Stormwater Retention Credit for a gallon of retention capacity created by the BMP or land cover.
- 528.4 Natural land cover employed to comply with a retention requirement in this chapter shall not be converted to compacted or impervious land cover, unless the loss of retention capacity associated with the land conversion will be:
- (a) Offset by a corresponding increase in retention capacity elsewhere on the site that complies with the requirements of this chapter; or

- (b) Offset by a corresponding increase in use of off-site retention that complies with the requirements of this chapter; and
- (c) The Department approves a change to the previously approved SWMP for the site, showing how the loss of retention capacity will be offset.

528.5 Compacted land cover employed to comply with a retention requirement in this chapter shall not be converted to impervious land cover, unless the loss of retention capacity associated with the land conversion will be:

- (a) Offset by a corresponding increase in retention capacity elsewhere on the site that complies with the requirements of this chapter; or
- (b) Offset by a corresponding increase in use of off-site retention that complies with the requirements of this chapter; and
- (c) The Department approves a change to the previously approved SWMP for the site, showing how the loss of retention capacity will be offset.

528.6 Maintenance of each BMP and land cover shall comply with the applicable Department-approved SWMP, including promptly repairing and restoring each:

- (a) Grade surface;
- (b) Wall;
- (c) Drain;
- (d) Structure;
- (e) Foundation;
- (f) Sign;
- (g) Plant; and
- (h) Erosion or sediment control measure.

528.7 If the Department finds that a BMP or land cover is not being properly maintained:

- (a) The Department may require that the condition be corrected; and

- (b) The governmental agency, owner, or other person charged with maintenance responsibility shall correct the condition.

528.8 If an owner or other person charged with maintenance responsibility fails or refuses to correct a condition as the Department directs, the Department may:

- (a) Declare the owner or person out of compliance;
- (b) Take corrective action itself or through its contractor;
- (c) Assess the cost incurred and fees; and
- (d) Assess a fine or penalty.

528.9 If the Department determines that the condition of a BMP or land cover presents an actual or imminent harm to the environment or the public health, the Department may:

- (a) Declare the owner or other person charged with maintenance responsibility to be out of compliance;
- (b) Take protective and corrective action itself or through its contractor without prior notice to the owner;
- (c) Assess the cost incurred and fees; and
- (d) Assess a fine or penalty.

528.10 Used soil media removed from a BMP receiving drainage from an area intended for use or storage of motor vehicles shall not be re-used for planting or as fill material and shall be disposed of in a landfill or at a transfer station for transport to a landfill.

528.11 Non-vegetative waste material from cleaning, maintaining, repairing, and replacing a BMP shall be disposed of in a landfill, trash transfer station, or other facility for processing these materials in accordance with District and Federal law.

529 STORMWATER MANAGEMENT: COVENANTS AND EASEMENTS

529.1 The owner of each lot and parcel that is part of a site that undertook a major regulated project shall record with the Recorder of Deeds:

- (a) A declaration of covenants that includes the on-site and off-site responsibilities in the Department-approved Stormwater Management Plan (SWMP); and
- (b) An easement that the Department requires to ensure access for inspection and maintenance of a Best Management Practice (BMP) or land cover employed to comply with this chapter.

529.2 An agency of the federal government or District government shall not be required to make or record a declaration of covenants, except that, if a District-owned property is sold to a private owner or leased for more than three (3) years, the property's SWMP must be incorporated in a declaration of covenants and recorded as a burden on the property or the leasehold.

529.3 The declaration of covenants and easement shall:

- (a) Be determined legally sufficient by the Attorney General or the Department's designee;
- (b) Be binding on each subsequent owner;
- (c) Include an agreement to indemnify the District of Columbia, its officers, agents, and employees from and against all claims or liability that may arise out of or in connection with, either directly or indirectly, any of the owner's actions or omissions with regard to the construction, operation, maintenance or restoration of the BMP or land cover; and
- (d) Provide for inspection of and access to the BMP or land cover at reasonable times by the Department or its authorized representative.

529.4 If the Department determines that a change to an approved SWMP for a site affects the terms of a declaration of covenants or an easement required by this chapter, the owner of each affected lot or parcel of that site shall revise as the Department approves and record the declaration of covenants or easement accordingly.

530 STORMWATER MANAGEMENT: IN-LIEU FEE

530.1 The base in-lieu fee established by the Department for a purpose of this chapter shall represent the full life-cycle cost for the Department to retain one gallon (1 gal.) of stormwater for one (1) year, including the following costs:

- (a) Project planning;
- (b) Project design;

- (c) Project management;
- (d) Construction and installation;
- (e) Operations and maintenance;
- (f) Project financing;
- (g) Land acquisition;
- (h) Administration of the in-lieu fee program; and
- (i) Legal support for the in-lieu fee program.

530.2 The Department shall adjust the in-lieu fee for inflation annually pursuant to § 501.1.

530.3 The Department may re-evaluate the costs underlying the in-lieu fee and re-base the in-lieu fee as the Department determines necessary.

530.4 The Department shall provide notice in the *D.C. Register* prior to re-basing the in-lieu fee.

530.5 An in-lieu fee payment shall be based on the in-lieu fee in effect at the time payment is made.

530.6 An in-lieu fee payment shall:

- (a) Be used solely to achieve increased retention in the District of Columbia;
- (b) Be used to achieve increased retention in the Anacostia watershed, if the payment achieves Off-Site Retention Volume for an Anacostia Waterfront Development Zone site.
- (c) Be deposited in the Stormwater In-Lieu Fee Payment Special Purpose Revenue Fund, established by The Water Pollution Control Act of 1984, effective March 16, 1985, as amended (D.C. Law 5-188; D.C. Official Code §§ 8-103.01 et seq.).
- (d)

**531 STORMWATER MANAGEMENT: CERTIFICATION OF
STORMWATER RETENTION CREDITS**

- 531.1 Only the Department shall certify a Stormwater Retention Credit (SRC), and no SRC shall be valid and usable for the purposes of this chapter unless the Department certifies it.
- 531.2 The Department shall:
- (a) Certify one (1) SRC for one (1) gallon of retention capacity per year in a Best Management Practice (BMP) or land cover change that meets the eligibility requirements of this section;
 - (b) Assign a unique serial number to each SRC; and
 - (c) Retain and track information about each SRC, including final sale price.
- 531.3 A person is eligible to apply to certify an SRC if they are one (1) of the following:
- (a) The owner of the property where the BMP or land cover change is installed or their agent; or
 - (b) The person the property owner has designated to become the owner of the SRC that would be certified.
- 531.4 For a major regulated project, a person shall file the first complete application to certify SRCs no later than three (3) years after the date the Department has:
- (a) Completed a final construction inspection; or
 - (b) If no final construction inspection was required, determined the installation of the BMP or land cover change was completed.
- 531.5 For a major regulated project for which SRCs have previously been certified, a person shall file any subsequent complete application to certify additional SRCs:
- (a) No later than three (3) years after the end of the preceding SRC certification period the Department approved; and
 - (b) No earlier than three (3) months before the end of the current certification period the Department approved.
- 531.6 For a project that is not a major regulated project, a person shall file a complete application to certify SRCs as follows:

- (a) For the first certification period:
 - (1) On or before July 30, 2020, if the BMP or land cover change was installed before July 1, 2013; or
 - (2) At any time after completing construction if the BMP or land cover change was installed on or after July 1, 2013; and
- (b) For a subsequent certification period, no earlier than three (3) months before the end of the current certification period the Department approved.

531.7 A BMP or land cover change is eligible to generate an SRC if:

- (a) Design, installation, and operation comply with a Department-approved Stormwater Management Plan (SWMP);
- (b) A professional engineer licensed in the District of Columbia certified an as-built SWMP that meets the requirements of this chapter and includes the areas that drain to the BMP or land cover change;
- (c) The Department approved a final construction inspection; and
- (d) All BMPs included in the approved SWMP passed a Department inspection within six (6) months before the date the applicant submitted the application to certify SRCs.

531.8 A gallon of retention capacity in a BMP or land cover change is eligible to generate an SRC if it is from the portion of the retention capacity that:

- (a) Is not installed to comply with a stormwater management requirement of a statute, regulation, or court order, including:
 - (1) A Watershed Implementation Plan established under a Total Maximum Daily Load for the Chesapeake Bay; or
 - (2) A court-approved consent decree, including court-approved modifications, for reducing Combined Sewer Overflows (CSOs) in the District of Columbia, except that retention capacity installed on an experimental basis as a requirement of the consent decree shall be eligible if a subsequent modification of the consent decree ends the requirement to maintain that retention capacity;
- (b) Does not exceed the SRC ceiling as defined in § 599; and
- (c) Exceeds:

- (1) The Stormwater Retention Volume (SWRv) and Water Quality Treatment Volume (WQTV), if the SRC is generated by a major regulated project;
- (2) Pre-project retention, if the SRC is not generated by a major regulated project; and
- (3) Water quality treatment requirements of this chapter that were in effect before July 19, 2013, if the SRC is generated by any project approved under those requirements.

531.9 The Department shall not approve an incomplete application for SRC certification.

531.10 A complete application for SRC certification shall consist of:

- (a) A completed application form submitted in the Department's submittal database;
- (b) An executed maintenance contract or a signed promise to follow a maintenance plan that:
 - (1) Complies with the Department-approved SWMP and the specifications described in the Department's Stormwater Management Guidebook (SWMG); and
 - (2) Is for the period of time for which the certification of the SRC is requested;
- (c) Documentation that the maintenance provider has the expertise and capacity to provide required maintenance for the period of SRC certification;
- (d) A signed promise from the owner of the property on which the BMP or land cover is located to notify the Department if the property is sold or otherwise transferred to another person during the period for which SRCs are certified; and
- (e) Any other documentation the Department requires to determine that the eligibility requirements in this chapter are satisfied.

531.11 If the Department determines that a complete application meets the eligibility requirements in this chapter, it shall certify up to three (3) years' worth of SRCs for each gallon of SRC-eligible retention capacity.

- 531.12 The Department shall not certify an SRC for:
- (a) Ineligible retention capacity;
 - (b) A period that begins earlier than the date of the submittal of a complete application; or
 - (c) Any overlapping period in which the Department has already certified an SRC for the same retention capacity.
- 531.13 The Department may waive submittal of any documentation required for a complete application if that documentation is on file with the Department and reflects current conditions, except that the Department shall not waive submittal of a current maintenance agreement or maintenance contract for the BMP or land cover change.
- 531.14 The Department may conduct inspections of a BMP or land cover before and after certification of an SRC.
- 531.15 The Department may refuse to certify an SRC for a person who is currently out of compliance with:
- (a) Any Off-Site Retention Volume (Offv) requirement; or
 - (b) Any requirement to maintain a BMP or land cover.
- 531.16 A property owner or their agent may propose to aggregate retention from multiple small sites that would not otherwise trigger a stormwater management performance requirement in this chapter by submitting a single SWMP that:
- (a) Specifies a common design for multiple BMPs of the same type(s);
 - (b) Specifies well-defined technical criteria for location and placement of each BMP;
 - (c) Specifies how each BMP will be constructed, operated, and maintained;
 - (d) Demonstrates the technical capacity to locate, design, install, and maintain each BMP; and
 - (e) Demonstrates compliance with the requirements of this chapter.

**532 STORMWATER MANAGEMENT: LIFESPAN OF
STORMWATER RETENTION CREDITS**

532.1 The current SRC owner or their agent may:

- (a) Bank an SRC indefinitely until the lifespan of the SRC terminates;
- (b) Transfer an SRC to a new owner; or
- (c) Terminate the lifespan of an SRC by submitting a form in the
Department's submittal database to request the Department's authorization
to:
 - (1) Use the SRC to comply with one (1) gallon of an Off-Site
Retention Volume (Offv) requirement for one (1) year; or
 - (2) Retire the SRC.

532.2 When a person is out of compliance with the requirements of this chapter, the
Department may administratively terminate the lifespan of an SRC that the person
owns by:

- (a) Using the SRC to comply with the person's Offv requirement; or
- (b) Pursuant to § 532.4(c), retiring the SRC to resolve the person's failure to
comply with a requirement of an SWMP for which the Department
certified an SRC.

532.3 An original SRC owner may request the Department's approval to terminate a
requirement to maintain a BMP or land cover change during a time period for
which the Department has certified an SRC. To do so, the original SRC owner
shall:

- (a) If the BMP or land cover change is required to comply with the
performance requirements for a major regulated activity, obtain the
Department's approval for a plan revision pursuant to this chapter; and
- (b) For each SRC certified for the time period:
 - (1) Retire the SRC; or
 - (2) If the SRC cannot be retired because the lifespan of the SRC has
terminated or because the SRC has been transferred to a new
owner, then:

- (A) Retire another SRC as a replacement according to the list of eligible SRC types in § 532.6; or
- (B) Pay the in-lieu fee as a replacement.

532.4 If the Department determines that an original SRC owner failed to maintain a BMP or land cover change during a time period for which the Department has certified an SRC, and the original SRC owner did not receive the Department's approval to terminate the maintenance requirement pursuant to § 532.3, the Department shall:

- (a) Provide the original SRC owner with written notice of noncompliance;
- (b) Calculate the prorated amounts of SRCs and in-lieu fee that correspond to the time period of noncompliance;
- (c) If the original SRC owner still owns an SRC that was certified for the time period and the lifespan of the SRC has not terminated:
 - (1) Deny use of the SRC to comply with an Offv;
 - (2) Deny transfer of ownership of the SRC; and
 - (3) Administratively retire the SRC pursuant to this section; and
- (d) If the lifespan of an SRC that was certified for the time period has terminated, require the original SRC owner to retire another SRC or pay the in-lieu fee as a replacement pursuant to this section.

532.5 If an original SRC owner does not retire an SRC or pay an in-lieu fee within sixty (60) days of the date the Department issued a written notice of noncompliance pursuant to § 532.4:

- (a) The Department shall administratively retire another SRC that the original SRC owner owns according to the list of eligible SRC types in § 532.6; or
- (b) If the original SRC owner does not own an eligible SRC, then the original SRC owner shall:
 - (1) Pay the in-lieu fee for the equivalent number of SRCs that are required; and
 - (2) Pay an administrative late fee calculated as ten percent (10%) of the in-lieu fee amount pursuant to § 501.12.

- 532.6 When a person or the Department retires an SRC to replace another SRC, they shall:
- (a) Replace any type of SRC with a High-Impact SRC;
 - (b) Replace a Low-Impact Municipal Separate Storm Sewer System (MS4) SRC with any MS4 SRC;
 - (c) Replace a Low-Impact Green Combined Sewer System (Green CSS) SRC with any SRC except a Low-Impact Gray Combined Sewer System (Gray CSS) SRC; or
 - (d) Replace a Low-Impact Gray CSS SRC with any type of SRC.

533 STORMWATER MANAGEMENT: OWNERSHIP OF STORMWATER RETENTION CREDITS

533.1 A Stormwater Retention Credit (SRC) may be bought and sold.

533.2 No person may sell a SRC that:

- (a) Has already been used to achieve an Off-Site Retention Volume (Offv); or
- (b) The person does not own.

533.3 No person may complete a transfer of SRC ownership without receiving the Department's approval.

533.4 A complete application for transfer of SRC ownership shall be in writing on a Department-provided form that includes:

- (a) The unique serial number of each SRC;
- (b) Identification of the seller and the buyer, including contact information; and
- (c) The purchase price.

533.5 Only the existing owner of an SRC (the seller) and the proposed SRC owner (the buyer) shall apply to transfer SRC ownership.

533.6 Before approving a transfer of SRC ownership, the Department shall verify the ownership and status of each SRC.

- 533.7 The Department shall undertake efforts to publicly share information of the price, purchase, sale, value, time, certification, and use of an SRC that is not personal, proprietary, a trade secret, or otherwise confidential.

534– 539 [RESERVED]

**540 SOIL EROSION AND SEDIMENT CONTROL:
APPLICABILITY**

- 540.1 No person shall engage in razing or land-disturbing activity, including stripping, clearing, grading, grubbing, excavating, and filling of land, without obtaining the Department’s approval of a soil erosion and sediment control plan, unless exempted in this chapter.
- 540.2 Notwithstanding any exemptions provided in this chapter, a person who engages in a demolition project that results in debris, dust, or sediment leaving the site shall apply each necessary control measure, upon receiving instruction to do so by the Department.
- 540.3 Notwithstanding any exemptions provided in this chapter, a person who exposes erodible material and causes erosion shall apply each necessary control measure, upon receiving instruction to do so by the Department.
- 540.4 A person who applies for Department approval of a soil erosion and sediment control plan shall be the owner of the property where the activity is to take place.
- 540.5 The approved soil erosion and sediment control plan shall govern all construction work requiring the control of soil erosion and sediment.
- 540.6 At the Director’s discretion, the Department may establish conditions for a general or blanket approval of soil erosion and sediment control plans that are solely covering specified activities carried out under and complying with specifications approved by the Department. These conditions may include requirements for an applicant to provide notice to the Department and comply with inspections as would normally be required under this chapter. The Department shall establish and revise any such conditions as necessary and publish them on its website as updates to the District of Columbia Standards and Specifications for Soil Erosion and Sediment Control.

541 SOIL EROSION AND SEDIMENT CONTROL: EXEMPTIONS

- 541.1 The following land-disturbing activities are exempt from the requirement to comply with the soil erosion and sediment control provisions of this chapter:

- (a) For a single- or two (2) family house, townhouse, or rowhouse:
 - (1) Gardening;
 - (2) Landscaping;
 - (3) Repairs;
 - (4) Maintenance; and
 - (5) Stormwater retrofits, provided that:
 - (A) The soil allows for percolation; and
 - (B) The retrofit location is no closer than ten (10) feet from a building foundation;
- (b) Utility service connection, repair, or upgrade;
- (c) A project for which the total cost is less than twelve thousand, five hundred and seventy-three dollars and twelve cents (\$12,573.12) or the current value pursuant to § 541.2;
- (d) Installation of fencing, a gate, signpost, or a pole;
- (e) Emergency work to protect life, limb, or property, and emergency repairs, except that the following are not exempted to the extent described:
 - (1) The land disturbed shall still be shaped and stabilized pursuant to the requirements of this chapter;
 - (2) Generally applicable control measures shall be used; and
 - (3) The property owner or their agent shall submit a plan to the Department's submittal database within three (3) weeks after beginning the emergency work; and
- (f) Activities that disturb less than fifty (50) square feet.

541.2 Each year after 2025, the amount described in § 541.1(c) shall increase by the percentage, if any, by which the Urban Consumer Price Index for June of the calendar year exceeds the Urban Consumer Price Index for June of the previous year. Each inflation adjustment shall be posted to the Department's website.

542 SOIL EROSION AND SEDIMENT CONTROL: PLAN

- 542.1 The soil erosion and sediment control plan shall not be approved without the date and signature of the Director or the Director's designee stamped on the plan.
- 542.2 The approved soil erosion and sediment control plan for a project shall be available on site for Department review for the entire period of construction during ordinary business hours.
- 542.3 The Department shall approve a soil erosion and sediment control plan only if the Department determines the following:
- (a) The plan meets the requirements of this chapter and of the Department's Standards and Specifications for Soil Erosion and Sediment Control;
 - (b) The applicant has paid each applicable fee; and
 - (c) The applicant has certified, in writing, that he or she will implement each control measure specified in the plan.
- 542.4 The Department may, with respect to a soil erosion and sediment control plan:
- (a) Reject a submission as incomplete;
 - (b) Approve;
 - (c) Deny;
 - (d) Approve or deny in part; and
 - (e) Require conditions or modifications.
- 542.5 If a plan is disapproved, the Department shall notify the applicant in writing, providing the specific reasons for the disapproval of the plan.
- 542.6 The Department may suggest modifications, terms, and conditions necessary to comply with the requirements of this chapter.
- 542.7 A soil erosion and sediment control plan may cover multiple phases of a project.
- 542.8 The applicant shall submit one (1) electronic set of the soil erosion and sediment control plan to the Department for review via the Department's submittal database. For projects that receive a walkthrough permit review, the applicant shall also submit one (1) paper set of the soil erosion and sediment control plan to the Department.

- 542.9 The applicant shall, at a minimum, provide the following information on the soil erosion and sediment control plan:
- (a) A title that indicates the plan is a soil erosion and sediment control plan;
 - (b) A project narrative;
 - (c) The address of the property;
 - (d) The lot, square, or parcel numbers;
 - (e) The name, address, and telephone number of:
 - (1) The property owner;
 - (2) The developer; and
 - (3) The plan designer;
 - (f) For sites where work will be done on slopes in excess of fifteen percent (15%), the seal and signature of a professional engineer, licensed in the District of Columbia;
 - (g) A vicinity sketch indicating north arrow, scale, and other information necessary to locate the property;
 - (h) One of the following horizontal scales of profile, unless otherwise approved:
 - (1) One inch equals ten feet (1 in. = 10 ft);
 - (2) One inch equals twenty feet (1 in. = 20 ft);
 - (3) One inch equals thirty feet (1 in. = 30 ft);
 - (4) One inch equals forty feet (1 in. = 40 ft);
 - (5) One inch equals fifty feet (1 in. = 50 ft); or
 - (6) One inch equals eighty feet (1 in. = 80 ft);
 - (i) One of the following vertical scales of profile, unless otherwise approved:
 - (1) One inch equals two feet (1 in. = 2 ft);

- (2) One inch equals four feet (1 in. = 4 ft);
 - (3) One inch equals five feet (1 in. = 5 ft); or
 - (4) One inch equals ten feet (1 in. = 10 ft);
- (j) Existing features that may be relevant factors in the development of an erosion prevention plan, such as vegetation, wildlife habitat, water areas, and topsoil conditions;
- (k) The existing and proposed topography, including clear identification of all areas of slope greater than fifteen percent (15%);
- (l) The proposed grading and earth disturbance including:
 - (1) Surface area involved;
 - (2) Volume of spoil material;
 - (3) Volume of borrow material; and
 - (4) Limits of clearing and grading including limitation of mass clearing and grading whenever possible;
- (m) Storm drainage provisions, including:
 - (1) Velocities and quantities of flow from a sediment control measure to an approved point of discharge; and
 - (2) Site conditions around each point of surface water discharge from the site;
- (n) Erosion and sediment control provisions to minimize on-site erosion and prevent off-site sedimentation including:
 - (1) Provisions specified to ensure land disturbance does not extend beyond the proposed area of disturbance;
 - (2) Details of grading practices that will be used on the site;
 - (3) Methods to minimize, to the extent practicable, off-site vehicle tracking of sediment and generation of dust; and
 - (4) Design details for structural control measures, including size and location of each erosion and sediment control measure, including:

- (A) Use of a crushed stone dike on each access road that is above grade; and
 - (B) Use of a stabilized construction entrance for a construction project on each access road;
- (o) Details of each interim and permanent stabilization measure, including statement of intent to adhere to the following, by placing the statement on the soil erosion and sediment control plan:

“Following initial land disturbance or re-disturbance, permanent or interim stabilization shall be completed within seven (7) calendar days for the surface of all perimeter controls, dikes, swales, ditches, perimeter slopes, and all slopes greater than three (3) horizontal to one (1) vertical (3:1); and fourteen (14) days for all other disturbed or graded areas on the project site. The requirements of this paragraph do not apply to those areas which are shown on the plan and are being used for material storage other than stockpiling, or for those areas on which actual construction activities are being performed. Maintenance shall be performed as necessary so that stabilized areas continuously meet the appropriate requirements of the District of Columbia Standards and Specifications for Soil Erosion and Sediment Control;”

- (p) The sequence of construction, including:
 - (1) A description of the relationship between the implementation and maintenance of controls, including permanent and interim stabilization and the various stages or phases of earth disturbance and construction; and
 - (2) A sequence for each of the following activities:
 - (A) Clearing and grubbing for those areas necessary for installation of perimeter controls;
 - (B) Construction of perimeter controls;
 - (C) Remaining clearing and grubbing;
 - (D) Road grading;
 - (E) Grading for the remainder of the site;
 - (F) Utility installation, including the use or blocking of storm drains after construction;

- (G) Final grading, landscaping, or stabilization; and
 - (H) Removal of controls;
 - (q) A general description of the predominant soil types on the site, as described by the appropriate soil survey information available from the United States Department of Agriculture National Resources Conservation Service;
 - (r) Recommendations for areas with unstable soils from a professional engineer licensed in the District of Columbia; and
 - (s) A statement placed on the soil erosion and sediment control plan stating that the applicant shall contact the Department to schedule a preconstruction meeting before the commencement of a land-disturbing activity.
- 542.10 After receiving notification that a soil erosion and sediment control plan meets the requirements for the Department's approval, the applicant shall submit to the Department's submittal database a final preconstruction application including:
- (a) The complete plan; and
 - (b) Proof that each applicable fee for Department services has been paid.
- 542.11 The Department shall issue the approved copies of the soil erosion and sediment control plan after the applicant has submitted proof that each applicable fee for Department services has been paid.
- 542.12 Following approval of the plan, the applicant shall request the Department's approval at each of the following stages of construction:
- (a) Installation of perimeter erosion and sediment controls, but before proceeding with any other earth disturbance or grading; and
 - (b) Final stabilization of the site before the removal of erosion and sediment controls. Final stabilization means that all land-disturbing activities at the site have been completed and either of the following two (2) criteria are met:
 - (c) A uniform (for example, evenly distributed, without large bare areas) perennial vegetative cover with a density of seventy percent (70%) of the native background vegetative cover for the area has been established on all unpaved areas and areas not covered by permanent structures, or

- (1) Equivalent permanent stabilization measures (such as the use of riprap, gabions, or geotextiles) have been employed.

542.13 A soil erosion and sediment control plan shall be designed in compliance with this chapter by:

(a) A District-licensed:

- (1) Professional engineer;
- (2) Land surveyor;
- (3) Architect; or
- (4) Landscape architect; or

(b) A homeowner or homeowner's licensed contractor for a single- or two-family house, townhouse, or rowhouse if the project does not involve construction of the house or an addition to the house.

542.14 In support of a plan which it submits for approval, the applicant shall provide additional available information that the Department considers necessary to demonstrate compliance with erosion and sediment control requirements in this chapter.

542.15 A copy of each approved plan shall be at the construction site from the date of commencement of the construction activities to the date of final stabilization and shall be made available for the Department's inspection.

543 SOIL EROSION AND SEDIMENT CONTROL: REQUIREMENTS

543.1 Erosion and sediment control measures shall be those the Department approves.

543.2 The Department shall maintain a copy of its Standards and Specifications for Soil Erosion and Sediment Control on its website and make a hard copy available for review at its offices.

543.3 Soil erosion and sediment control measures shall prevent transportation of sediment from the site.

543.4 Waterway crossing and stream bank protection measures designed and installed in compliance with the Department's Standards and Specifications for Soil Erosion and Sediment Control shall be assumed to be adequate for that purpose.

- 543.5 A best management practice shall be protected from sedimentation and other damage during construction to ensure proper post-construction operation.
- 543.6 Erosion and sediment control measures shall be in place before and during land disturbance, except as otherwise specifically stated.
- 543.7 Erosion and sediment control measures shall be in place to stabilize an exposed area as soon as practicable after construction activity has temporarily or permanently ceased but no later than fourteen (14) days following cessation, except that temporary or permanent stabilization shall be in place at the end of each day of underground utility work that is not contained within a larger development site.
- 543.8 Permanent stabilization of streets and parking areas shall be with base course crushed stone or other Department-approved measures.
- 543.9 Measures shall be implemented and corrective action taken, including as specified by the Department, to prevent the discharge to District sewers or District waterbodies of erodible material or waste material including those materials that have been transported off site.
- 543.10 A site disturbing five thousand or more square feet ($\geq 5,000$ ft²) of land shall:
- (a) Adhere to a SWPPP that:
 - (1) The Department provides in its SWMG;
 - (2) The Department approves as including the minimum measures in the Department-provided SWPPP; or
 - (3) Is required under the Construction General Permit issued by Region III of the United States Environmental Protection Agency; and
 - (b) Post a legible copy of the SWPPP on-site.
- 543.11 A person shall avoid work on a slope in excess of fifteen percent (15%), to the maximum extent practicable. Where avoidance is not practicable, the Soil Erosion and Sediment Control Plan for the site shall be designed, signed, and sealed by a professional engineer, licensed in the District of Columbia, and the applicant shall incorporate additional protection strategies which the Department may require in order to prevent erosion or transportation of sediments from the site.

- 543.12 Except on an area that is undergoing construction, perimeter controls that disturb land, including dikes, swales, ditches, and perimeter slopes, shall be stabilized within one (1) week of initial land disturbance or redisturbance:
- (a) On the surface of each disturbed area; and
 - (b) On each associated slope greater than three (3) horizontal to one (1) vertical (3:1).
- 543.13 Runoff from the site shall be controlled by either diverting or conveying the runoff through areas with erosion and sediment control measures, such as through the installation of lined conveyance ditches, channels, or checkdams.
- 543.14 Critical area stabilization shall be applied to each cut and fill slope:
- (a) That is equal to or steeper than 3:1;
 - (b) That is flatter than 3:1 if the Department determines that the soil characteristics require it; and
 - (c) To every cut and fill slope when construction is out-of-season for planting and until permanent protection can be provided.
- 543.15 If the Department determines that a cut and fill slope is likely to result in erosion by stormwater of sediment from the site onto adjacent property or a nearby waterbody, then the cut and fill slope shall be protected against erosion by the use of structural diversions that are protected by vegetation or matting, in a frequency and manner that a geotechnical or civil engineer licensed in the District of Columbia has determined, based on site conditions, is sufficient to prevent erosion.
- 543.16 Stockpiled material:
- (a) That is actively being used during a phase of construction shall be protected against erosion by establishing and maintaining perimeter controls around the stockpile; and
 - (b) That is not being actively used or added to shall be stabilized with mulch, temporary vegetation, hydro-seed or plastic within fifteen (15) calendar days after its last use or addition.
- 543.17 Sediment traps or basins and other erosion and sediment controls shall be:
- (a) Installed no later than the first phase of land grading;

- (b) Installed as soon as new site-related runoff is detected; and
 - (c) Employed at all times to protect inlets or storm sewers below silt-producing areas.
- 543.18 Debris basins, diversions, waterways, and related structures shall be seeded and mulched, or have sod or a stabilization blanket installed immediately after they are built.
- 543.19 Construction site access measures to minimize off-site vehicle tracking shall:
 - (a) Be installed no later than the first day of construction;
 - (b) Stabilize each construction entrance;
 - (c) Include each additional measure required to keep sediment from being:
 - (1) Tracked, or otherwise carried, onto public streets by construction vehicles; and
 - (2) Washed into a storm drain or waterway; and
 - (d) Comply with all other Department requirements.
- 543.20 Off-site accumulations of sediment:
 - (a) Shall be removed daily during construction; and
 - (b) Shall be removed immediately if the Department so requires after an inspection.
- 543.21 Maintenance shall be performed to prevent stabilized areas from becoming unstabilized.
- 543.22 A sign that notifies the public to contact the Department in the event of erosion or other pollution shall be prominently posted on every site subject to this chapter, and the sign shall:
 - (a) Be in plain view of and readable by the public at a distance of twelve feet (12 ft);
 - (b) Be placed at each entrance to the site or as directed by the Department; and

- (c) (Provide contact information identified by the Department, including telephone numbers and email address.

544 SOIL EROSION AND SEDIMENT CONTROL: ROADWAY PROJECTS

- 544.1 Rough graded rights-of-way awaiting installation of utilities or pavement shall be protected by the installation of:
- (a) Interceptor dikes across rights-of-way so located as to limit roadway grade to a length between dikes of not more than five hundred feet (500 ft); or
 - (b) Alternative controls that are recommended by a Professional Engineer (PE) licensed in the District of Columbia and that are approved by the Department.
- 544.2 Temporary diversion dikes and flumes, or alternative controls that are recommended by a PE licensed in the District of Columbia and that are approved by the Department, shall be used to carry runoff down cut-and-fill slopes to an outlet approved by the Department as part of the soil erosion and sediment control plan.
- 544.3 A permanent drainage structure, including diversions at top-of-slope cuts and diversions to lead runoff to a storm sewer or other suitable outlet, shall be installed at the completion of rough grading, unless the Department approves an alternative that has been recommended by a PE licensed in the District of Columbia.

545 SOIL EROSION AND SEDIMENT CONTROL: BUILDINGS, DEMOLITION, RAZING, AND SITE DEVELOPMENT

- 545.1 Erosion shall be controlled by the installation of gutters and downspouts as soon as practicable.
- 545.2 Measures shall be taken to achieve a non-eroding velocity for stormwater exiting from a roof or downspout or to temporarily pipe that stormwater directly to a storm drain.
- 545.3 The site work shall maximize the preservation of natural vegetation and limit the removal of vegetation to that which is necessary for construction or landscaping activity.

- 545.4 If site conditions preclude employment of other means of erosion control, the Department may approve installation of small dikes constructed along a low-lying perimeter area of a job site.
- 545.5 In an area along a waterbody, a buffer shall be established:
- (a) By not disturbing the land immediately adjacent to the waterbody, except to restore native vegetation;
 - (b) Of at least twenty-five (25) feet on both sides of the waterbody, measured perpendicular to and horizontally from the top of bank; and
 - (c) With vegetation or other measure required by the Department to ensure that the buffer acts as a filter to trap sediment and keep it onsite.
- 545.6 The Department may approve an exception to or modification of the requirement for a project to establish a buffer if:
- (a) The construction activities comply with the control measures specified in the Department-approved soil erosion and sediment control plan for the project; and
 - (b) By the end of construction and thereafter, the property owner:
 - (1) Complies with a one and seven-tenths (1.7) inch Stormwater Retention Volume (SWRv) requirement for the area of land disturbance within the buffer, calculated using the SWRv formula in § 520, with a P equal to one and seven-tenths (1.7) inches;
 - (2) Applies for and receives relief from extraordinarily difficult site conditions for a portion of the one and seven-tenths (1.7) inch SWRv requirement and complies with the treatment and off-site retention requirements for the volume of relief granted; or
 - (3) Applies for and receives a Department determination to grant relief for a portion of the one and seven-tenths (1.7) inch SWRv requirement, on-site treatment is not feasible, and complies with the alternatives to on-site treatment that the Department approves to help to protect or restore the waterbody for which the buffer is intended; and
 - (c) The land disturbance is:
 - (1) Required to construct, install, or repair a:

- (A) Public trail for walking, biking, or similar purposes;
 - (B) Public point of access for boating, fishing, or viewing a waterbody; or
 - (C) Stormwater outfall or other utility line; or
- (2) Required to enable development of the rest of the site in a manner that is similar to the proposed project.

**546 SOIL EROSION AND SEDIMENT CONTROL:
UNDERGROUND UTILITIES**

546.1 If the land-disturbing activity involves work on an underground utility, the site shall comply with the following requirements:

- (a) No more than five hundred linear feet (500 ft) of trench shall be open at any one time;
- (b) All excavated material shall be placed on the uphill side of a trench;
- (c) Interim or permanent stabilization shall be installed upon completion of refilling; and
- (d) When natural or artificial grass filter strips are used to collect sediment from excavated material, mulches and matting shall be used in order to minimize erosion of these materials.

**547 SOIL EROSION AND SEDIMENT CONTROL: RESPONSIBLE
PERSONNEL**

547.1 If a site involves a land disturbance of five thousand square feet (5,000 ft²) or more, the owner of the site and the site manager shall ensure that a responsible person is present or available as this section requires.

547.2 A responsible person shall, while the site is in a phase involving land-disturbing activity, ensure that the activity complies with this chapter by:

- (a) Inspecting the site and its erosion and sediment control measures at least once biweekly and after a rainfall event to identify and remedy each potential or actual erosion problem;
- (b) Being available to respond to each potential or actual erosion problem identified by construction personnel; and

- (c) Being available to speak on site with the Department to remedy each potential or actual erosion problem.

547.3 A responsible person shall be:

- (a) Licensed in the District of Columbia as a land surveyor, architect, or civil, environmental, or geotechnical engineer; or
- (b) Certified through a training program that the Department approves, including a course on erosion control provided by another jurisdiction or professional association.

547.4 During construction, the responsible person shall have available on-site proof of professional licensing or of successful completion of a Department-approved training program.

547.5 A Department-approved training program shall cover the following topics, as demonstrated in the training syllabus:

- (a) The detrimental effects of sediment pollution to waterbodies;
- (b) The benefits of proper and effective erosion and sediment control implementation and maintenance;
- (c) The purpose and provisions of the District of Columbia erosion and sediment control laws, rules, and regulations;
- (d) A description of sediment as a pollutant;
- (e) The process of:
 - (1) Erosion;
 - (2) Sediment transport; and
 - (3) Sediment deposition;
- (f) Proper implementation of erosion and sediment control;
- (g) Recognition and correction of improperly implemented erosion and sediment controls;
- (h) Proper maintenance of erosion and sediment controls; and

- (i) Responsibilities of supervisory and enforcement personnel.

548– 552 [RESERVED]

553 NOTICE OF PROPOSED STORMWATER FEE RATE CHANGE AND PUBLIC HEARING

553.1 Except as provided in § 6(c) of the District of Columbia Administrative Procedure Act, approved October 21, 1968, D.C. Official Code § 2-505(c), before establishing or changing fees used to fund the District's costs of complying with the National Pollution Discharge Elimination System permit for the municipal separate storm sewer system (MS4 Permit), including the costs of the Stormwater Administration, the Water and Sewer Authority's costs for billing and collecting the stormwater fee, and all administrative, operating, and capital costs associated with the stormwater management activities in the District of Columbia, the Director shall first publish notice of his or her intention to do so in the *D.C. Register*. The notice may also be published in a newspaper of general circulation in the District of Columbia.

553.2 The notice shall state as follows:

- (a) The rate under consideration by the Director;
- (b) The date, time, and location of a public hearing to be held by the Director on the proposed rate, or a statement that the date, time and location will be specified in a forthcoming notice;
- (c) The time period during which written comments may be submitted for consideration by the Director; and
- (d) The requirements of § 554 of this chapter.

554 PUBLIC HEARING

554.1 The hearing shall be conducted not earlier than thirty (30) days after publication of the notice specified in § 553.1 of this chapter.

554.2 The Director, or his or her designee, shall conduct the public hearing.

554.3 Any member of the public who wants to testify at the public hearing shall submit his or her name, and the name of any organization(s), if any, which he or she represents, to the Department at least three (3) days before the date of the hearing, except that this requirement may be waived by the Director at the hearing.

- 554.4 Statements of members of the public who are testifying on their own behalf shall be limited to five (5) minutes, and statements of those who are appearing on behalf of organizations shall be limited to ten (10) minutes, except that this requirement may be waived by the Director at the hearing.
- 554.5 Others present at the hearing who wish to be heard may testify after those on the witness list have been called and heard.
- 554.6 If, in the opinion of the Director, or his or her designee conducting the hearing, a witness is abusive or unruly, such that his or her behavior is disrupting the conduct of the hearing, the Director, or his or her designee conducting the public hearing may call for a recess, order the witness to cease the behavior, or order the witness to leave the hearing. A person who is ordered to leave a hearing may submit written comments, pursuant to the requirements of this section.
- 554.7 In addition to, or in place of, oral testimony, members of the public may submit written testimony or comments during the period specified in the notice of proposed ratemaking. Either form of comment shall be given equal weight.

555 ADOPTION OF STORMWATER FEE

- 555.1 Following the completion of the hearing and the comment period specified in the notice of the proposed stormwater fee adjustment, a rate may be established or adjusted by the Director.
- 555.2 An approved stormwater fee shall take effect on the date identified in the final rulemaking published in the *D.C. Register*.

556 STORMWATER FEES

- 556.1 Effective May 1, 2009, the stormwater fee collected from each District of Columbia retail water and sewer customer shall be based upon the Equivalent Residential Unit (ERU). An ERU is defined as 1,000 square feet of impervious area of real property.
- 556.2 A residential customer means a single-family dwelling used for domestic purposes, a condominium or apartment unit where each unit is served by a separate service line and is individually metered and the unit is used for domestic purposes, or a multifamily structure of less than four apartment units where all the units are served by a single service line that is master metered. Residential customers shall be assessed ERUs for the square feet of impervious surface on the property, as follows:
- (a) 0.6 ERUs for 100 to 600 square feet of impervious surface;

- (b) 1.0 ERU for 700 to 2,000 square feet of impervious surface;
- (c) 2.4 ERUs for 2,100 to 3,000 square feet of impervious surface;
- (d) 3.8 ERUs for 3,100 to 7,000 square feet of impervious surface;
- (e) 8.6 ERUs for 7,100 to 11,000 square feet of impervious surface; and
- (f) 13.5 ERUs for 11,100 square feet or more of impervious surface.

556.3 All non-residential customers shall be assessed ERU(s) based upon the total amount of impervious area on each lot. This total amount of impervious area shall be converted into ERU(s), reduced to the nearest 100 square feet. Non-residential customers shall include all customers not within the residential class.

556.4 Impervious-only properties are properties that have not, prior to May 1, 2009, had metered water/sewer service and require the creation of new customer accounts for billing of stormwater fees. The DC Water and Sewer Authority, pursuant to the Water and Sewer Authority Establishment and Department of Public Works Reorganization Act of 1996, effective April 18, 1996 (D.C. Law 11-111, §§ 203(3), (11) and 216; D.C. Official Code §§ 34-2202.03(3), (11)), shall establish accounts for and bill these impervious-only properties for stormwater fees pursuant to its regulations in 21 DCMR Chapter 41.

556.5 The charge for one Equivalent Residential Unit (ERU) shall be two dollars and sixty-seven cents (\$2.67) per month. This charge shall become effective November 1, 2010.

556.6 A landlord shall not pass a stormwater charge to a tenant that is more than the stormwater charge prescribed by the Director.

557 STORMWATER FEE DISCOUNT PROGRAM: PURPOSE

557.1 The purposes of Sections 557 through 563 are to:

- (a) Implement the District Department of the Environment's stormwater fee discount program;
- (b) Reduce the volume of stormwater runoff from properties in the District of Columbia; and
- (c) Comply with the requirements of the Comprehensive Stormwater Management Enhancement Amendment Act of 2008, effective March 25, 2009, as amended (D.C. Law 17-371; D.C. Official Code §§ 8-152.01 et seq.).

558 STORMWATER FEE DISCOUNT PROGRAM: ELIGIBILITY

- 558.1 The stormwater fee discount program shall apply to each retail District of Columbia Water and Sewer Authority (DC Water) customer that pays the stormwater fee described in § 556 of this chapter.
- 558.2 The District Department of the Environment (Department) shall grant a stormwater fee discount to a customer that has installed an eligible Best Management Practice (BMP) on its property.
- 558.3 A customer shall have the right to apply for the stormwater fee discount beginning on the effective date of this section; except that, for a Simplified Application, the customer shall have the right to apply no earlier than one (1) year after the effective date of this section.
- 558.4 The Department shall calculate the discount to be applied to the customer's DC Water bill:
- (a) As a recurring subtraction from the stormwater fee billed pursuant to § 556;
 - (b) Beginning no later than the billing period that follows DC Water's processing of the discount; and
 - (c) For the stormwater fee discount period that this chapter sets.
- 558.5 Notwithstanding any other provision of this section, if the customer installed an eligible BMP on its property before the effective date of this section, the discount shall begin to accrue as a Retroactive Discount on the later of:
- (a) The eligible BMP's installation date; or
 - (b) May 1, 2009.
- 558.6 The Department shall calculate the Retroactive Discount that is to be applied to the customer's DC Water bill as an offset to the stormwater fee until the Retroactive Discount is zero (0).
- 558.7 To receive a Retroactive Discount, the customer must:
- (a) Be otherwise eligible to receive a discount;
 - (b) Provide documentation verifying the date of installation;
 - (c) Prove that the practice installed is still functional;

- (d) Allow the Department to inspect each BMP identified on the application; and
- (e) Apply no later than one (1) year from the date on which the customer has the right to apply.

558.8 A customer seeking a stormwater fee discount shall, in order to be eligible for the discount:

- (a) Be current on all billed stormwater fee payments;
- (b) Submit a complete application to the Department, in a manner prescribed by the Department; and
- (c) Unless applying via a Simplified Application, accurately describe in the application the design and performance of the BMP by referencing or submitting:
 - (1) The final stormwater management plan approval notice issued by the Department; or
 - (2) All of the following:
 - (A) Designs;
 - (B) Technical specifications; and
 - (C) Calculation of stormwater retention volume.

558.9 A BMP shall, in order to be eligible for the discount:

- (a) Be fully installed and functioning;
- (b) Retain or infiltrate stormwater runoff;
- (c) Comply with all applicable construction codes;
- (d) Be properly sized and located;
- (e) Be designed and functioning in accordance with:
 - (1) Applicable industry and professional standards and specifications in effect at the time of installation; and
 - (2) The Department's Stormwater Management Guidebook; and

- (f) Be subject to inspection by the Department.

558.10 As a requirement of continued eligibility, the customer shall:

- (a) Properly maintain the BMP so that it continues to function as designed and approved; and
- (b) Continue to allow the Department access to the property to inspect the BMP.

558.11 An approved discount shall expire on the first of:

- (a) The end of the stormwater fee discount period provided in this chapter;
- (b) The property or BMP is no longer eligible for the discount; or
- (c) The property is sold or otherwise transferred to a new owner; except that the new owner may direct the Department to use the technical information from the earlier approved application in support of the new discount.

559 STORMWATER FEE DISCOUNT PROGRAM: DISCOUNT CALCULATION

559.1 No stormwater fee discount shall exceed the maximum allowable discount, which shall be fifty-five percent (55%) of the otherwise chargeable stormwater fee.

559.2 The stormwater fee discount shall be calculated as follows:

- (a) Determine, in gallons, the maximum volume of stormwater runoff retained by the eligible Best Management Practice (BMP) during a one and two-tenths-inch (1.2 in.) rainfall event;
- (b) Divide the step “(a)” result by seven hundred ten and seventy-five hundredths gallons (710.75 gal.) per Equivalent Residential Unit (ERU) (the number of gallons of stormwater runoff per ERU that would be generated by a one and two-tenths-inch (1.2 in.) rainfall event);
- (c) Multiply the step “(b)” result by the maximum allowable discount percentage; and
- (d) Multiply the step “(c)” result by the stormwater fee per ERU specified in § 556;

- (e) Except that, for a rain barrel, the Department may allow the calculation method in § 559.6(e) to be used.

559.3 The calculated stormwater fee discount shall be applied to each month's obligation of the stormwater fee.

559.4 The stormwater fee discount will appear on the customer's District of Columbia Water and Sewer Authority bill beginning with the billing period that follows the District Department of the Environment's (Department's) receipt and processing of a complete application, which processing will include transmittal to DC Water to incorporate the discount in the customer's billing calculation.

559.5 A customer shall have the right to apply with a Simplified Application for a property with a BMP, or multiple BMPs, that manages a cumulative impervious area of two thousand square feet (2,000 sq. ft.) or less.

559.6 The Department shall calculate the discount eligible for use of the Simplified Application as follows:

- (a) Determine the total area that the BMP(s) manages, in square feet, after taking into consideration the runoff coefficients of this chapter for each land cover type;
- (b) Divide the step "(a)" result by the original total area of impervious surface, and express the quotient as a percentage;
- (c) Multiply the step "(b)" result by the maximum allowable discount;
- (d) Multiply the percentage result from step "(c)" by the stormwater fee per ERU specified in § 556; and
- (e) For rainwater harvesting, including a rain barrel and a cistern, add:
 - (1) The product of multiplying the stormwater fee by 0.13 ERU per rain barrel installed; or
 - (2) The discount calculated using the methodology of § 559.2.

560 STORMWATER FEE DISCOUNT PROGRAM: Inspection

560.1 The District Department of the Environment (Department) shall have the right to inspect a property, for which a customer has applied or is receiving a stormwater fee discount, in order for the Department to determine whether the Best Management Practice (BMP) retains the stormwater runoff volume:

- (a) Described on the discount application; or
- (b) Previously approved for a discount.

560.2 In order to secure access to a property to inspect a BMP, the Department shall seek permission from the owner, or the owner's agent, including:

- (a) The customer identified in the District of Columbia Water and Sewer Authority's records;
- (b) A tenant; or
- (c) The property manager.

560.3 A customer's refusal or knowing failure to provide the Department with access to inspect the BMP shall constitute grounds to deny or revoke the discount, effective the date of the unsuccessful inspection attempt.

561 STORMWATER FEE DISCOUNT PROGRAM: APPROVAL PERIOD; REAPPROVAL

561.1 A stormwater fee discount shall be approved for a discount period of three (3) years, running ordinarily from the date of approval.

561.2 In order to receive approval for an additional stormwater fee discount period, a customer must submit an application to the District Department of the Environment (Department).

561.3 In order to avoid a lapse in a discount while the Department reviews an application for approval of an additional discount period, a customer must submit the application by sixty (60) days before the expiration of the current stormwater fee discount period.

561.4 The application shall be submitted on such forms, and in hard copy or electronically, as the Department may designate.

561.5 Upon receipt of an application for approval of an additional discount period, the Department may perform an inspection to verify that the Best Management Practice (BMP) remains eligible for the discount.

561.6 The Department may deny or approve an application for approval of an additional discount period, in whole or in part.

561.7 If the Department approves the application, the stormwater fee discount shall be approved for an additional discount period running from the earlier of:

- (a) The date of the approval; or
- (b) The expiration of the preceding approval period.

561.8 An eligible BMP may be approved for more than one (1) period.

562 STORMWATER FEE DISCOUNT PROGRAM: Denial, Reduction, or Revocation of Stormwater Fee Discount

562.1 The District Department of the Environment (Department) may make a decision to:

- (a) Deny an application for a discount or discount period, in whole or in part; and
- (b) Reduce or revoke a discount for a Best Management Practice's nonperformance, its failure to retain the stormwater runoff volume for which a discount was approved.

562.2 The Department shall provide to the customer a notice of a decision, stating the basis for the decision and the customer's right to dispute the Department's decision, which may include a statement of:

- (a) Each deficiency;
- (b) Corrective action necessary;
- (c) Deadline, if any;
- (d) The proposed denial, reduction, or revocation of a discount;
- (e) The requirement, if any, for an inspection or re-inspection; and
- (f) The customer's right to appeal, as provided in this chapter.

562.3 The Department may extend the period for corrective action for good cause shown.

563 ADMINISTRATIVE APPEALS AND JUDICIAL REVIEW

563.1 With respect to a matter governed by Sections 557 through 562 of this chapter, a person adversely affected or aggrieved by an action of the District Department of the Environment (Department) shall exhaust administrative remedies by timely filing an administrative appeal with, and requesting a hearing before, the Office of Administrative Hearings (OAH), established pursuant to the Office of

Administrative Hearings Establishment Act of 2001, effective March 6, 2002, as amended (D.C. Law 14-76; D.C. Official Code, §§ 2-1831.01 *et seq.*), or OAH's successor.

- 563.2 For the purposes of Sections 557 through 562 of this chapter, an action of the Department taken with respect to a person shall include:
- (a) Signed settlement of a decision;
 - (b) Approval;
 - (c) Denial;
 - (d) Determination; or
 - (e) Other action of the Department which constitutes the consummation of the Department's decision-making process and is determinative of a person's rights.
- 563.3 A person aggrieved by an action of the Department shall file a written appeal with OAH within the following time period:
- (a) Fifteen (15) calendar days of service of the notice of the action; or
 - (b) Another period of time stated specifically in this section for an identified Department action.
- 563.4 An action of the Department identified in this section shall become the final, unappealable, and unreviewable action of the Department unless a person has filed a timely administrative appeal with OAH within fifteen (15) days of the action.
- 563.5 Notwithstanding another provision of this section, the Department may, for good cause shown, extend a period for filing an administrative appeal with OAH if it does so explicitly in writing before the period expires.
- 563.6 OAH shall:
- (a) Resolve an appeal by:
 - (1) Affirming, modifying, or setting aside the Department's action complained of, in whole or in part;
 - (2) Remanding for Department action or further proceedings, consistent with OAH's order; or

- (3) Providing such other relief as the governing statutes, regulations, and rules support;
 - (b) Act with the same jurisdiction, power, and authority as the Department may have for the matter currently before OAH; and
 - (c) By its final decision render a final agency action that will be subject to judicial review.
- 563.7 The filing of an administrative appeal shall not in itself stay enforcement of an action, except that a person may request a stay according to the rules of OAH.
- 563.8 The burden of proof in an appeal of an action of the Department shall be allocated to the person who appeals the action, except the Department shall bear the ultimate burden of proof when it denies a right.
- 563.9 The burden of production in an appeal of an action of the Department shall be allocated to the person who appeals the action, except that it shall be allocated:
- (a) To the Department when a party challenges the Department's suspension, revocation, or termination of a:
 - (1) License;
 - (2) Permit;
 - (3) Continuation of an approval; or
 - (4) Other right;
 - (b) To the party who asserts an affirmative defense; and
 - (c) To the party who asserts an exception to the requirements or prohibitions of a statute or rule.
- 563.10 The final OAH decision on an administrative appeal shall thereafter constitute the final, reviewable action of the Department and shall be subject to the applicable statutes and rules of judicial review for OAH final orders.
- 563.11 An action for judicial review of a final OAH decision shall not be a de novo review but shall be a review of the administrative record alone and not duplicate agency proceedings or hear additional evidence.
- 563.12 Nothing in this chapter shall be interpreted to:

- (a) Provide that a filing of a petition for judicial review stays enforcement of an action; or
- (b) Prohibit a person from requesting a stay according to the rules of the court.

563.13 If a term in a provision of this section conflicts with a provision in another section of this chapter, the term in the provision of this section controls.

564 CLEAN RIVERS IMPERVIOUS SURFACE AREA CHARGE RELIEF PROGRAM FOR NONPROFIT ORGANIZATIONS

564.1 The provisions in this section and Sections 565 through 570 provide the eligibility criteria, payment guidance, and appeal procedures for the Clean Rivers Impervious Surface Area Charge (CRIAC) Relief Program for Nonprofit Organizations (CRIAC Nonprofit Relief Program).

564.2 The purpose of the CRIAC Nonprofit Relief Program is to assist nonprofit organizations in the District with payment of the DC Water CRIAC on eligible properties. The CRIAC is billed monthly for individual properties, defined by the unique Square, Suffix, and Lot, and calculated based on the number of equivalent residential units (ERUs), on certain properties.

564.3 Benefits will only be granted for the portion of a nonprofit's property that meets the requirements of § 565.1 and 565.2, hereinafter referred to as "eligible ERU" or "eligible impervious area" in this chapter.

564.4 Benefits granted to a nonprofit organization by the CRIAC Nonprofit Relief Program may not exceed the amount of the CRIAC on the nonprofit organization's water and sewer bill, when combined with any DC Water Clean Rivers Impervious Surface Area Charge Incentive Discount.

564.5 Benefits granted through the CRIAC Nonprofit Relief Program shall be applied as a credit on the water and sewer bill, provided that:

- (a) Nothing in this chapter shall be interpreted to mean that a benefit provided to a nonprofit organization through the CRIAC Nonprofit Relief Program is an entitlement, continuing or otherwise;
- (b) Benefits provided by the Department under the CRIAC Nonprofit Relief Program are subject to the availability of funds; and
- (c) If the Department determines that remaining available funds may be insufficient to provide further benefits during a fiscal year, the Department may:

- (1) Suspend the process of taking applications;
- (2) Suspend the process of awarding benefits; or
- (3) Lower the level of benefit established by section 568.3 as necessary based on the available funds.

565 ELIGIBILITY CRITERIA FOR PROPERTIES OF NONPROFIT ORGANIZATIONS

565.1 To be eligible for relief under the CRIAC Nonprofit Relief Program for the CRIAC assessed on a particular property, an organization shall, with respect to that property:

- (a) Have an active DC Water account and responsibility for paying DC Water's CRIAC; and
- (b) Meet at least one of the following conditions:
 - (1) Have obtained, from the District's Office of Tax and Revenue (OTR), a real property tax exemption, pursuant to:
 - (A) D.C. Official Code § 47-1002(12) (certain cemeteries);
 - (B) D.C. Official Code § 47-1002(13) and (14) (certain property of religious institutions); or
 - (C) D.C. Official Code § 47-1002(8) (certain charitable institutions); or
 - (D) D.C. Official Code § 47-1002(32) (certain continuing care retirement communities); or
 - (2) Maintain a current license, from the Department of Insurance, Securities, and Banking (DISB), as a continuing care retirement facility for a property that is exempt from District real property tax, pursuant to D.C. Official Code §§ 44-151.01 et seq; or
 - (3) Have obtained, from OTR, an exemption from possessory interest tax pursuant to D.C. Official Code § 47-1005.01 for a use described in D.C. Official Code §§ 47-1002(8), (12), (13), (14), and (32).

565.2 If a portion of the property has a use other than the eligible uses described in § 565.1, or is otherwise excluded from benefits under these rules, to determine the

eligible impervious area or eligible ERUs for the remainder of the property, the Department may:

- (a) Use the percent of real property improvements for which OTR has granted real property tax exemption;
- (b) Use the DC Water-calculated amount of eligible ERUs, as available; or
- (c) Estimate the eligible ERUs, using at a minimum, aerial photography and other relevant information, as available.

565.3 In addition to § 565.1 above, for a property to be eligible for the CRIAC Nonprofit Relief Program, the nonprofit organization shall:

- (a) Show significant financial hardship in paying its CRIAC in accordance with § 565.4;
- (b) At the Department's request, allow the Department, or an organization approved by the Department, to visit the site of the nonprofit organization and recommend potential stormwater mitigation project(s) on the site;
- (c) Submit for the Department's approval, a written proposal to mitigate stormwater runoff through one of the following:
 - (1) Install and maintain on the site of the nonprofit organization a stormwater runoff mitigation project that meets the requirements of § 565.5;
 - (2) If a stormwater runoff mitigation project on the site of the nonprofit organization is infeasible, implement or have implemented an alternative, off-site stormwater runoff mitigation measure or activity in the District that meets the requirements of § 565.6;
 - (3) Maintain on the site of the nonprofit organization an existing stormwater mitigation project that meets the requirements of § 565.5; or
 - (4) For a major regulated project, as defined in § 599, maintain compliance with the Stormwater Management Performance Requirements in §§ 520 and 522;

- (d) For any project under paragraphs (c)(1) and (c)(2) of this subsection, complete, implement, or have implemented the stormwater mitigation project within one (1) year after receiving the Department's approval of the written proposal; and
- (e) Submit to the Department:
 - (1) A copy of the most recently submitted FP-161 Exempt Property Use Report; and
 - (2) If applicable, a copy of the most recent, active Permanent License as a Continuing Care Retirement Community, issued by DISB.

565.4 For eligible organizations, as determined by § 565.1(b), significant financial hardship, as referred to in § 565.3(a), shall be established as follows:

- (f) For an organization that is required to file a U.S. Department of the Treasury, Internal Revenue Service (IRS) form 990, or that has filed said form voluntarily, submit the most recent filed copy of the IRS Form 990, provided that it was filed within the last two completed tax years, and a signed declaration, executed under penalty of perjury, attesting that the annual CRIAC is at least one percent (1%) of the organization's annual revenue, less expenses, as reported on Part I, Line 19 of the IRS Form 990.
- (a) For an organization that, in the most recent completed fiscal year, was not required by the IRS to file, or has not voluntarily filed, an IRS form 990, submit a signed declaration and income statement, consistent with the requirements of an IRS Form 990, executed under penalty of perjury, prepared in accordance with standard accounting practices, documenting that the annual CRIAC is at least one percent (1 %) of the organization's annual revenue, less expenses.
 - (1) The Department will apply best practices, such as testing a subset of signed declarations, to help ensure that the submission and declaration process is valid.
 - (2) For the purposes of this provision, fiscal year is defined as twelve (12) consecutive months ending on the last day of any month used as an annual accounting period by the eligible organization for keeping records and reporting income and expenses.

565.5 For an on-site stormwater mitigation project to qualify under §§ 565.3(c)(1) or (c)(3), the organization must:

- (a) Plant, or have planted after May 1, 2009, one tree per eligible ERU on the property of the nonprofit organization for which the CRIAC benefit is sought; or
- (b) Manage ten percent (10%) of the eligible impervious area through the installation of BMPs that are eligible for a Stormwater Fee Discount as described in § 558.

565.6 For an off-site stormwater mitigation project to qualify under § 565.3(c)(2), the organization must:

- (a) Obtain and retire ten (10) Stormwater Retention Credits (SRCs) per eligible ERU, which may be SRCs obtained prior to the commencements of the CRIAC Nonprofit Relief Program; or
- (b) Elect to use a portion of their approved benefit, equal to the current market value of ten (10) SRCs per eligible ERU, to fund stormwater mitigation efforts elsewhere in the District. The Department shall use this funding through a Department program to provide stormwater mitigation on behalf of the organization.

565.7 An eligible nonprofit organization may implement a combination of the above stormwater mitigation options, including on-site and off-site, to receive benefits.

565.8 As a requirement of continued eligibility in the CRIAC Nonprofit Relief Program:

- (a) A nonprofit organization that met the requirements of § 565.3(c) in whole or in part through on-site stormwater mitigation must both meet the requirements of § 565.5 and:
 - (1) Properly maintain the tree(s), or maintain the qualifying BMP(s) so that it continues to function as designed and approved; and
 - (2) Allow the Department access to the property to inspect the tree or BMP; or
- (b) A nonprofit organization that met the requirements of § 565.3(c) in whole or in part through off-site stormwater mitigation must, as applicable:
 - (1) Retire ten (10) SRCs per eligible ERU annually; or
 - (2) Elect to use a portion of their approved benefit, equal to the current market value of ten (10) SRCs per eligible ERU, to fund stormwater mitigation efforts elsewhere in the District through a Department-approved program.

566 INITIAL APPLICATION

- 566.1 In order to obtain CRIAC benefits, a nonprofit organization must submit an application to the Department prior to September 1 of the fiscal year in which relief is sought.
- 566.2 A nonprofit organization applying for benefits will submit a separate application for any non-adjacent property.
- 566.3 The application shall be submitted on such forms, in hard copy or electronically, as the Department may designate.
- 566.4 The Department shall notify the applicant whether the funding request has been approved, denied, or if additional information is needed to make a determination. Incomplete applications shall be returned to the applicant.

567 RENEWAL APPLICATION

- 567.1 Renewal applications must be received by the Department prior to September 1 of the fiscal year in which relief is sought.
- 567.2 Upon receipt of a renewal application, the Department may perform an inspection to verify that the BMP or stormwater mitigation project remains eligible for the discount.
- 567.3 For a renewal applicant who had proposed a stormwater mitigation project, the applicant shall submit proof that the organization made a reasonable and good faith effort, as determined by the Department, to fulfill its proposal.

568 APPROVAL; AMOUNT AND DURATION OF BENEFITS

- 568.1 If the Department approves a CRIAC Nonprofit Relief Program application, the benefits shall be available for the entire fiscal year (October 1 – September 30) in which the application was submitted, based on the availability of funds, provided that the nonprofit remains eligible, as described in § 565.1 and 565.2.
- 568.2 The Department shall determine the benefits available under the CRIAC Nonprofit Relief Program, equivalent to a specific percentage of the organization's CRIAC, taking into account the following:
- (a) The availability of funds;
 - (b) The number of eligible organizations ; and

- (c) Any Clean Rivers IAC Incentive Program discount associated with the Eligible ERUs.

568.3 The Department may calculate a retroactive benefit to account for the period from the start of the fiscal year in which the application or renewal application was received through the date of approval, which would be provided as a one-time credit on the nonprofit's water and sewer bill.

569 DENIAL, REDUCTION, OR REVOCATION OF BENEFITS

569.1 The Department may:

- (a) Deny an application for a benefit period based on an applicant's failure to meet the eligibility requirements of the CRIAC Nonprofit Relief Program, or deny an application in whole or in part based on lack of available funding;
- (b) Reduce or revoke a benefit for:
 - (1) A tree that the Department determines is unhealthy or dying;
 - (2) The failure of the BMP to retain the stormwater runoff volume for which the discount was approved, or
 - (3) The organization's failure to obtain SRCs; and
- (c) Require reimbursement of any portion of the benefits, based on the organization's:
- (d) Submission of false or invalid documentation, including:
 - (A) Documents required to be filed under § 565.4 to establish financial hardship; and
 - (B) Other required application materials; or
- (e) Failure to make a good faith effort to fulfill the stormwater mitigation project required in § 565.3(c) or § 565.5 that generated the CRIAC benefit.

569.2 The Department shall provide notice of a decision to the nonprofit organization, stating the basis for the decision and the organization's right to appeal the Department's decision, as provided in § 570.

569.3 If denial, reduction, or revocation is based on failure to maintain or fulfill the terms of a project as proposed, notice shall also include a statement of:

- (a) Each deficiency;
- (b) Corrective action necessary;
- (c) Deadline for completion of the corrective action, if any; and
- (d) The requirement, if any, for an inspection or re-inspection by the Department.

569.4 The Department may extend the period for corrective action for good cause shown.

569.5 The nonprofit organization shall not have a right to appeal a reduction, suspension, or revocation of CRIAC benefit that is based on a lack of available funding.

570 ADMINISTRATIVE APPEALS

570.1 With respect to a matter governed by Sections 564 through 569 of this chapter, an organization adversely affected or aggrieved by an action of the Department may file a written appeal to the Director of the Department, or the Director's designee, stating the basis of the appeal, and providing any information or material that would support a change to the Department's action. The appeal must be filed within fifteen (15) calendar days after receipt of the notice of the action.

570.2 The decision of the Director or the Director's designee upon appeal shall become the final action of the Department. An organization may seek review of that decision with, and request a hearing before, the Office of Administrative Hearings (OAH) within thirty (30) days of the Department's action. Prehearing practice and the conduct of the hearing shall be in accordance with the Department of Consumer and Regulatory Affairs Civil Infractions Act of 1985, effective October 5, 1985 (D.C. Law 6-42; D.C. Official Code §§ 2-1801 *et seq.*) and the regulations set forth at Title 1, Chapter 28 of the District of Columbia Municipal Regulations.

571 – 598 [RESERVED]

599 DEFINITIONS

599.1 When used in this chapter, the following terms and phrases shall have the meanings ascribed:

Advanced Design (AD) - Detailed design for an area of a project described explicitly in a:

- (a) Stage Two (2) Planned Unit Development (PUD) application to the District Zoning Commission;
- (b) Application for design review under the Capitol Gateway Overlay District to the District Zoning Commission; and
- (c) Final design submission to the National Capital Planning Commission (NCPC).

Affordable Housing – a single-family or two-family house that is built to be offered for rent or for sale for residential occupancy below market value and is made available to, and affordable to, a household whose income is equal to, or less than, eighty percent (80%) of the Area Median Income calculation provided by the United States Department of Housing and Urban Development.

Anacostia Waterfront Development Zone (AWDZ) - the following areas of the District of Columbia, as delineated on a map in the Department's Stormwater Management Guidebook:

- (a) Interstate 395 and all rights-of-way of Interstate 395, within the District, except for the portion of Interstate 395 that is north of E Street, S.W., or S.E.;
- (b) All land between that portion of Interstate 395 that is south of E Street, S.W. or S.E., and the Anacostia River or Washington Channel;
- (c) All land between that portion of Interstate 695, and all rights of way, that are south of E Street, S.W. or S.E., and the Anacostia River;
- (d) The portion of Interstate 295 that is north of the Anacostia River, within the District, and all rights-of-way of that portion of Interstate 295;
- (e) All land between that portion of Interstate 295 that is north of the Anacostia River and the Anacostia River;
- (f) The portions of:
 - (1) The Anacostia Freeway that are north or east of the intersection of the Anacostia Freeway and Defense Boulevard and all rights-of-way of that portion of the Anacostia Freeway;

- (2) Kenilworth Avenue that extend to the northeast from the Anacostia Freeway to Eastern Ave; and
 - (3) Interstate 295, including its rights-of-way that are east of the Anacostia River and that extends to the southwest from the Anacostia Freeway to Defense Boulevard;
- (g) All land between those portions of the Anacostia Freeway, Kenilworth Avenue, and Interstate 295 described in subparagraph (f) of this definition and the Anacostia River;
- (h) All land that is adjacent to the Anacostia River and designated as parks, recreation, and open space on the District of Columbia Generalized Land Use Map, dated January 2002, except for the land that is:
 - (1) North of New York Avenue, N.E.;
 - (2) East of the Anacostia Freeway, including rights-of-way of the Anacostia Freeway;
 - (3) East of the portion of Kenilworth Avenue that extends to the northeast from the Anacostia Freeway to Eastern Avenue;
 - (4) East of the portion of Interstate 295, including its rights-of-way, that is east of the Anacostia River and that extends to the southwest from the Anacostia Freeway to Defense Boulevard, but excluding the portion of 295 and its rights-of-way that go to the northwest across the Anacostia River;
 - (5) Contiguous to that portion of the Suitland Parkway that is south of Martin Luther King, Jr. Avenue; or
 - (6) South of a line drawn along, and as a continuation both east and west of the center line of the portion of Defense Boulevard between Brookley Avenue, S.W., and Mitscher Road, S.W.;
- (i) All land, excluding Eastern High School, that is:
 - (1) Adjacent to the land described in subparagraph (h) of this definition;
 - (2) West of the Anacostia River; and
 - (3) Designated as a local public facility on the District of Columbia Generalized Land Use Map, dated January 2002;

- (j) All land that is:
 - (1) South or east of that portion of Potomac Avenue SE, between Interstate 295 and 19th Street, S.E.; and
 - (2) West or north of the Anacostia River;
- (k) The portion of the Anacostia River within the District; and
- (l) The Washington Channel.

Anacostia Waterfront Development Zone Site (AWDZ site) - A site within the Anacostia Waterfront Development Zone that undergoes a major regulated project that is publicly owned or publicly financed.

Animal confinement area - An area, including a structure, used to stable, kennel, enclose, or otherwise confine animals, not including confinement of a domestic animal on a residential property.

Applicant - A person or their agent who applies for approval pursuant to this chapter.

As-built plan - A set of architectural, engineering, or site drawings, sometimes including specifications that certifies, describes, delineates, and presents details of a completed construction project.

Athletic playing fields - Compacted land cover and synthetic surfaces that are constructed primarily for use for athletic activities at schools and public parks. Compacted land cover and synthetic surfaces for which athletic activities are not the primary use are not considered athletic playing fields, unless these areas are necessary to support use of an adjacent area that is primarily used for athletic activities.

Best Management Practice (BMP) - Structural or nonstructural practice that minimizes the impact of stormwater runoff on receiving waterbodies and other environmental resources, especially by reducing runoff volume and the pollutant loads carried in that runoff.

Buffer - An area along a stream, river, or other natural feature that provides protection for that feature.

Building permit - Authorization for construction activity issued by the District of Columbia Department of Buildings.

Clearing - The removal of trees and brush from the land excluding the ordinary mowing of grass, pruning of trees or other forms of long-term landscape maintenance.

Combined sewer overflow (CSO) – The discharge of untreated effluent into a water body as a result of the combined volume of stormwater and sanitary water exceeding the capacity of the combined sewer system and wastewater treatment plant.

Combined sewer system (CSS) – Sewer system in which stormwater runoff is conveyed together with sanitary wastewater through sewer lines to a wastewater treatment plant.

Combined sewer system (CSS) area - All areas within the District of Columbia that are served by the combined sewer system. The CSS area is divided into two parts: Gray CSS area and Green CSS area.

Common plan of development (Common Plan) - A plan that involves or furthers multiple, separate, and distinct land-disturbing, substantial improvement, or other construction activities that may take place at different times or on different schedules.

Compacted cover - An area of land that is functionally permeable, but where permeability is impeded by increased soil bulk density as compared to natural cover, such as through grading, construction, or other activity and will require regular human inputs such as periodic planting, irrigation, mowing, or fertilization. Examples include landscaped planting beds, lawns, or managed turf.

Control measure - Technique, method, device, or material used to prevent, reduce, or limit discharge.

Construction - Activity conducted for the:

- (a) Building, renovation, modification, or razing of a structure; or
- (b) Movement or shaping of earth, sediment, or a natural or built feature.

Construction Codes – The most recent edition of the codes published by the International Code Council, or by a comparable nationally recognized and accepted code development organization, as adopted and amended by the Construction Codes Supplement by the District pursuant to the procedures set forth in § 6-1409 and in Title 12 of the District of Columbia Municipal Regulations or any successor regulations; provided, that where the Construction Codes authorize work to be carried to completion under a

previous edition of the Construction Codes, the term “Construction Codes” shall refer to that previous edition.

CRIAC - DC Water’s Clean Rivers Impervious Surface Area Charge or Clean Rivers Impervious Area Charge.

Critical area stabilization - Stabilization of areas highly susceptible to erosion, including down-slopes and side-slopes, through the use of brick bats, straw, erosion control blanket mats, gabions, vegetation, and other control measures.

Cut - An act by which soil or rock is dug into, quarried, uncovered, removed, displaced, or relocated and the conditions resulting from those actions.

DC Water – The District of Columbia Water and Sewer Authority.

Demolition - The removal of part or all of a building, structure, or built land cover.

Department – The District Department of the Environment, except that the term “department” shall simply mean the word “department” when the context clearly shows that the term is so used in the title of a statute or a publication.

Department of Buildings – The District of Columbia Department of Buildings, formerly known as the Department of Consumer and Regulatory Affairs.

Department’s submittal database - An online platform managed by the Department and accessible to the public that the Department uses to receive applications and make approval determinations.

Detention - Controlling the peak discharge rate of stormwater from a site.

Dewatering - Removing water from an area or the environment using an approved technology or method, such as pumping.

Director - The Director of the District Department of the Environment.

District - The District of Columbia.

Drainage area - Area contributing runoff to a single point.

Easement - A right acquired by a person to use another person’s land for a special purpose.

Electronic media - Means of communication via electronic equipment, including the internet.

Eligible Stormwater Retention Credit - The specific type of Stormwater Retention Credit that a person can use to comply with the Off-Site Retention Volume for a major regulated project pursuant to §527.

Erosion - The process by which the ground surface, including soil and deposited material, is worn away by the action of wind, water, ice, or gravity.

Excavation - An act by which soil or rock is cut into, dug, quarried, uncovered, removed, displaced or relocated and the conditions resulting from those actions.

Exposed area - Land that has been disturbed or land over which unstabilized soil or other erodible material is placed.

Equivalent Residential Unit (ERU) –A measure of impervious area based on one thousand (1,000) square feet of impervious surface area, taking account of a statistical median of residential properties. The number of ERUs is determined based on the amount of impervious area and the customer’s classification as residential, multi-family, or non-residential.

Grading - Causing disturbance of the earth, including excavating, filling, stockpiling of earth materials, grubbing, root mat or topsoil disturbance, or any combination of them.

Gray Combined Sewer System (Gray CSS) - A portion of the area served by the combined sewer system that is not targeted for green infrastructure implementation under a court-approved consent decree to help control combined sewer overflows.

Green Combined Sewer System (Green CSS) - A portion of the area served by the combined sewer system where green infrastructure implementation is targeted under a court-approved consent decree to help control combined sewer overflows.

High-Impact Stormwater Retention Credit (High-Impact SRC) - a Voluntary Stormwater Retention Credit generated by a Best Management Practice or land cover change installed after July 19, 2013, outside the area served by the combined sewer system.

Impervious cover - A surface area which has been compacted or covered with a layer of material that impedes or prevents the infiltration of water into the ground, examples include conventional streets, parking lots, rooftops,

sidewalks, pathways with compacted sub-base, and any concrete, asphalt, or compacted gravel surface and other similar surfaces.

Infiltration - The passage or movement of surface water through the soil profile.

Land cover - Surface of land that is impervious, compacted, or natural.

Land cover change - Conversion of land cover from one type to another, typically in order to comply with a requirement of this chapter or to earn certification of a Stormwater Retention Credit.

Land-disturbing activity - Movement of earth, land, or sediment that disturbs the land surface and the related use of pervious land to support that movement. Land-disturbing activity includes stripping, grading, grubbing, trenching, excavating, transporting, and filling of land, as well as the use of pervious adjacent land for movement and storage of construction vehicles and materials. Land-disturbing activity does not include repaving or remilling that does not expose the underlying soil.

Low Impact Development (LID) - A land planning and engineering design approach to manage stormwater runoff within a development footprint. It emphasizes conservation, the use of on-site natural features, and structural best management practices to store, infiltrate, evapotranspire, retain, and detain rainfall as close to its source as possible with the goal of mimicking the runoff characteristics of natural cover.

Low-Impact Combined Sewer System Stormwater Retention Credit (Low-Impact CSS SRC) - a Stormwater Retention Credit generated by a Best Management Practice or land cover change located within the area served by the Combined Sewer System.

Low-Impact Green Combined Sewer System Stormwater Retention Credit (Low-Impact Green CSS SRC) - A Stormwater Retention Credit generated by a Best Management Practice or land cover change located in the Green CSS area.

Low-Impact Gray Combined Sewer System Stormwater Retention Credit (Low-Impact Gray CSS SRC) - A Stormwater Retention Credit generated by a Best Management Practice or land cover change located in the Gray CSS area.

Low-Impact Municipal Separate Storm Sewer System Stormwater Retention Credit (Low-Impact MS4 SRC) - a Stormwater Retention Credit generated by a Best Management Practice or land cover change located

outside the area served by the Combined Sewer System and:

- (a) Installed to retain stormwater runoff in excess of the runoff that the Best Management is retaining to meet the stormwater management performance requirements of this chapter; or
- (b) Installed prior to July 19, 2013.

Low Impact Voluntary Stormwater Retention Credit (Low-Impact Voluntary SRC) - A Voluntary Stormwater Retention Credit that is generated by a Best Management Practice or land cover change installed on or before July 19, 2013, or located within the area served by the Combined Sewer System.

Major land-disturbing activity - Activity that disturbs, or is part of a common plan of development that disturbs, a land area of five thousand square feet (5,000 ft²) or greater, and:

- (a) Some area of the pre-project land cover is natural; or
- (b) Two thousand five hundred square feet (2,500 ft²) or greater of the post-project land cover is impervious.
- (c) Multiple distinct areas that each disturb less than five thousand square feet (5,000 ft²) of land and that are in separate, non-adjacent sites do not constitute a major land-disturbing activity.

Major regulated project - A major land-disturbing activity or a major substantial improvement activity.

Major substantial improvement activity - Substantial improvement activity and associated land-disturbing activity, including such activities that are part of a common plan of development, for which the combined footprint of improved building and land-disturbing activity is five thousand square feet (5,000 ft²) or greater, and:

- (a) Some area of the pre-project land cover is natural; or
- (b) Two thousand five hundred square feet (2,500 ft²) or greater of the post-project land cover is impervious.

A major substantial improvement activity may include a substantial improvement activity that is not associated with land disturbance.

Market value of a structure - Assessed value of the structure for the most recent year, as recorded in the real property assessment database maintained by the District of Columbia's Office of Tax and Revenue.

Municipal Separate Storm Sewer System Area (MS4 area) - All areas within the District of Columbia not served by the combined sewer system. The MS4 area includes areas where stormwater runoff is conveyed directly through municipal separate storm sewer lines or by any other means to the Anacostia and Potomac Rivers and their tributaries within the District of Columbia.

Natural cover - Land area that is dominated by vegetation and does not require regular human inputs such as irrigation, mowing, or fertilization to persist in a healthy condition. Examples include forest, meadow, or pasture.

Nonstructural Best Management Practice (BMP) - A land use, development, or management strategy to minimize the impact of stormwater runoff including conservation of natural cover or disconnection of impervious surface.

Off-site retention - Use of a stormwater retention credit or payment of in-lieu fee in order to achieve an off-site retention volume under these regulations.

Off-Site Retention Volume (Offv) - A portion of a required stormwater retention volume or required Water Quality Treatment Volume that is not retained on site.

On-site retention - Retention of a site's stormwater on that site or via conveyance to a shared best management practice on another site.

On-site stormwater management - Retention, detention, or treatment of stormwater on site or via conveyance to a shared best management practice.

Original Stormwater Retention Credit (SRC) owner - A person who is indicated as the proposed SRC owner in an application to the Department for the certification of an SRC. The proposed SRC owner becomes the original SRC owner upon the Department's certification of the SRC.

Owner - The person who owns real estate or other property, or that person's agent.

Peak discharge - The maximum rate of flow of water at a given point and time resulting from a storm event.

Permeable athletic track - A surface, including a surface made of synthetic material, located at a school or public park that is used for athletic purposes including biking, running, and walking, and that allows the infiltration of water into the ground.

Permeable playground surface - A surface, including a surface made of synthetic material, located under a playground area at a school or public park, that allows the infiltration of water into the ground.

Person - A legal entity, including an individual, partnership, firm, association, joint venture, public or private corporation, trust, estate, commission, board, public or private institution, cooperative, the District government and its agencies, and the federal government and its agencies.

Post-development - Describing conditions that may be reasonably expected to exist after completion of land development activity on a site.

Practice - A system, device, material, technique, process, or procedure that is used to control, reduce, or eliminate an impact from stormwater; except where the context indicates its more typical use as a term describing a custom, application, or usual way of doing something.

Pre-development - Describing conditions of meadow land and its relationship to stormwater before human disturbance of the land.

Pre-project - Describing conditions, including land covers, on a site that exist before the construction described in a stormwater management plan has begun.

Publicly-owned or publicly-financed project – A project:

- (a) That is District-owned or District-instrumentality owned;
- (b) Where at least fifteen percent (15%) of a project's total cost is District-financed or District-instrumentality financed; or
- (c) That includes a gift, lease, or sale from District-owned or District instrumentality-owned property to a private entity.

Public Right of Way (PROW) - The surface, the air space above the surface (including air space immediately adjacent to a private structure located on public space or in a public right of way), and the area below the surface of any public street, bridge, tunnel, highway, railway track, lane, path, alley, sidewalk, or boulevard.

Public Space - All the publicly owned property between the property lines on a street, park, or other public property as such property lines are shown on the records of the District. This includes any roadway, tree space, sidewalk, or parking between such property lines, but it excludes adjacent parks and other public property that is not associated with the public right of way

Raze - The complete removal of a building or other structure down to the ground or to its foundation.

Record drawing - The final annotated set of engineering drawings for a construction project, which includes all deviations, field changes, approved changes, constructed depths of footing and structural elements, and horizontal and vertical locations of utility facilities referenced to survey data.

Responsible person - Construction personnel knowledgeable in the principles and practices of erosion and sediment control and certified by a Department-approved soil erosion and sedimentation control training program to assess conditions at the construction site that would impact the effectiveness of a soil erosion or sediment control measure on the site.

Retention - Keeping a volume of stormwater runoff on site through infiltration, evapo-transpiration, storage for non-potable use, or some combination of these.

Retention capacity - The volume of stormwater that can be retained by a best management practice or land cover.

Retention failure - Failure to retain a volume of stormwater for which there is an obligation to achieve retention, including retention that an applicant promises to achieve in order to receive Department-certified Stormwater Retention Credits. Retention failure may result from a failure in construction, operation, or maintenance; a change in stormwater flow; or a fraud, misrepresentation, or error in an underlying premise in an application.

Retrofit - A best management practice or land cover installed in a previously developed area to improve stormwater quality or reduce stormwater quantity relative to current conditions.

Runoff - That portion of precipitation (including snow-melt) which travels over the land surface, and also from rooftops, either as sheetflow or as channel flow, in small trickles and streams, into the main water courses.

Sediment - Soil, including soil transported or deposited by human activity or the action of wind, water, ice, or gravity.

Sedimentation - The deposition or transportation of soil or other surface materials from one place to another as a result of an erosion process.

Self-generated Stormwater Retention Credit (Self-generated SRC) - A Stormwater Retention Credit generated by a Best Management Practice or land cover change that was installed by the same owner as the site with the Off-Site Retention Volume requirement.

Shared Best Management Practice (S-BMP) - A Best Management Practice (BMP), or combination of BMPs, providing stormwater management for stormwater conveyed from another site or sites.

Single- or two-family house - An individual house, townhouse, or rowhouse designed and used for occupancy by one or two families. An individual house, townhouse, or rowhouse that has been physically altered for use by more than one or two families is not considered a single- or two-family house.

Site - A tract, lot or parcel of land, or a combination of tracts, lots, or parcels of land for which development is undertaken as part of a unit, sub-division, or project. The mere divestiture of ownership or control does not remove a property from inclusion in a site.

Site Drainage Area (SDA) - The area that drains stormwater from the site to a single discharge point or sheet flows from a single area off the site.

Soil - All earth material of whatever origin that overlies bedrock and may include the decomposed zone of bedrock which can be readily excavated by mechanical equipment.

Soil Erosion and Sediment Control Plan - A set of drawings, calculations, specifications, details, and supporting documents related to minimizing or eliminating erosion and off-site sedimentation caused by stormwater on a construction site. It includes information on construction, installation, operation, and maintenance.

Soils report - A geotechnical report addressing all erosion and sediment control-related soil attributes, including but not limited to site soil drainage and stability.

Storm sewer - A system of pipes or other conduits which carries or stores intercepted surface runoff, street water, and other wash waters, or drainage, but excludes domestic sewage and industrial wastes.

Stormwater - Flow of water that results from runoff, snow melt runoff, and surface runoff and drainage.

Stormwater Management - A system to control stormwater runoff with structural and nonstructural best management practices, including: (a) quantitative control of volume and rate of surface runoff and (b) qualitative control to reduce or eliminate pollutants in runoff.

Stormwater Management Guidebook (SWMG) - The current manual published by the Department, and available on the Department's website, containing design criteria, specifications, and equations to be used for planning, design, construction, operation, and maintenance of a site and each best management practice on the site.

Stormwater Management Plan (SWMP) - A set of drawings, calculations, specifications, details, and supporting documents related to the management of stormwater for a site. A SWMP includes information on construction, installation, operation, and maintenance.

Stormwater Pollution Prevention Plan (SWPPP) - A document that identifies potential sources of stormwater pollution at a construction site, describes practices to reduce pollutants in stormwater discharge from the site, and may identify procedures to achieve compliance.

Stormwater Retention Credit (SRC) - A tradable unit, as certified by the Department, representing one (1) gallon of stormwater retention capacity for one (1) year from a BMP or land cover change.

Stormwater Retention Credit Ceiling - Maximum retention for which the Department will certify a Stormwater Retention Credit, calculated using the Stormwater Retention Volume (SWRV) equation at § 522.4(a) with P equal to one and seven-tenths (1.7) inches.

Stormwater Retention Volume (SWRV) - Volume of stormwater from a site for which the site is required to achieve retention.

Stripping - An activity which removes or significantly disturbs the vegetative surface cover including clearing, grubbing of stumps and rock mat, and top soil removal.

Substantial improvement - A repair, alteration, addition, or improvement of a building or structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure before the improvement or repair is started.

Substantially completed - The stage in a land-disturbing or substantial improvement activity when the project is sufficiently constructed so that the property owner can occupy or use the site for its intended purpose.

Structural best management practice - A practice engineered to minimize the impact of stormwater runoff, including a bioretention, green roof, permeable paving system, system to capture stormwater for non-potable uses, etc.

Supplemental review - A review that the Department conducts after the review it conducts for a first re-submission of a plan.

Swale - A narrow low-lying stretch of land which gathers or carries surface water runoff.

Transition Period One (TP1) – The one hundred and eighty (180) day period of time starting upon publication of the notice of adoption as final in the *D.C. Register* of the stormwater retention rulemaking. TP1 ends at the close of business on January 15, 2014.

Transition Period Two A (TP2A) – For a major land-disturbing activity, the three hundred and sixty-five (365) day period of time starting at the completion of Transition Period One. TP2A ends at the close of business on January 15, 2015.

Transition Period Two B (TP2B) – For a major substantial improvement activity, the five hundred and forty-five (545) day period of time starting at the completion of Transition Period One. TP2B ends at the close of business on July 14, 2015.

Voluntary Stormwater Retention Credit (Voluntary SRC) – A Stormwater Retention Credit generated by a Best Management Practice or land cover change that retains stormwater that is not from a major regulated project.

Waste material - Construction debris, dredged spoils, solid waste, sewage, garbage, sludge, chemical wastes, biological materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial or municipal waste.